M E M O R A N D U M

To: President Green
From: W. C. Hushing
Date: April 21, 1947

Herewith 15 copies of H.R. 3020, as passed by the U.S. House of Representatives and 15 copies of the Senate bill (S. 1126) as reported, and although the Senate bill was reported on April 17, the Committee Report will probably not be filed before tomorrow, and so we are somewhat handicapped.

The House Act was not referred to the Senate Committee on Labor and Public Welfare, but was immediately placed on the Senate Calendar.

93 Democrats joined with 215 Republicans on a roll call vote to pass the bill in the House by a vote of 308 to 107, while 22 Republicans, 84 Democrats and 1 American Laborite voted against it. Briefly, as passed by the House, it outlaws the closed shop, industrywide bargaining, and has many other objectionable curbs and features. The Senate bill (S.1126) as reported is less drastic, it prohibits the closed shop but allows the union shop, and does not touch, or raise any bar in regard to industrywide bargaining. Senator Taft expects to offer and pass amendments making the bill more objectionable to us.

The Act as passed by the House is the most far reaching anti-labor legislation ever passed. It is my opinion that we cannot defeat these anti-labor proposals in the Congress.

I do not think it advisable for us to attempt to better the Senate bill by amendments. I think our strategy should be to formally oppose the bill by letter to all Senators, as was done in the House, in order to make the Record, because our only hope of defeating this legislation is a veto, which we may be able to sustain in the Senate, which positively cannot be done in the House. I feel that we have a good chance, however, in the Senate. As national politics is involved in this question, if a veto is sustained it will end the matter. In case this occurs, Labor will be in a stronger position than ever.

The roll call votes on passage of this legislation should be forwarded to all our affiliates that you called upon several times to write or wire their congressional representatives to oppose such legislation in order that they may take those who voted for the bill to task.

ANTI-LABOR BILLS

Brief comparison of House (H.R. 3020) and Senate (S.1126) Bills

Industrywide Bargaining

The House bill bans industrywide bargaining except for plants employing less than 100 persons and located within a 50-mile radius. The Senate bill does not mention industrywide bargaining.

Communists

The House bill prevents the National Labor Relations Board from recognising unions with officers who are now, or ever were, members of the Communist Party. The Senate bill as yet does not touch on the Communist issue.

Wagner Labor Relations Act

The House bill would deprive unions of their Wagner Labor Relations Act privileges for one year if they engaged in jurisdictional strikes and secondary boycotts.

Closed Shop

Both ban the closed shop, but permit the union shop if it is approved by a majority of the employes. New employes would be required to join the union within 30 days. The House bill forbids unions to strike for the union shop, however.

Injunctions

Both bills would permit the government to obtain injunctions to enforce a cooling-off period before strikes could be called in transportation, public utility or communication industries. The House bill calls for a 75-day cooling-off period, the Senate for an 80-day.

Conciliation Service

Both bills would remove the Federal Conciliation Service from the jurisdiction of the Labor Dept. and set it up as an independent agency.

Bargaining

Both bills would prevent unions from refusing to bargain and from trying to coerce an employer into accepting a particular union.

Government Employes

One of the final amendments accepted by the House would prevent Government employes from striking or threatening to strike. Violators would be subject to dismissal.

WESTERN UNION

JOSEPH L. KNOTT
PRESIDENT

SYMBOLS
DL = Day Letter
NL = Night Letter
LC = Deferred Cable
NLT = Cable Night Letter
Ship Radiogram

...TIME at point of origin. Time of receipt is STANDARD TIME at point of destination

NA814 PD=NEWYORK NY 18 546P
1947 APR 18 PM 6 41
WILLIAM GREEN, PRESIDENT AMERICAN FEDERATION OF LABOR=
A F OF L BLDG WASHDC=

THE CURRENT ANTI LABOR BILL NOW PENDING IN CONGRESS CONSTITUTES A MENACE TO ALL OF THE PROGRESS ORGANIZED LABOR HAS MADE IN THE LAST 100 YEARS. WE URGE YOU TO MOBILIZE ALL CENTRAL AND STATE BODIES TO HOLD PROTEST MEETINGS AT WHICH DELEGATES WILL BE SELECTED TO VISIT THEIR CONGRESSMAN IN WASHINGTON. LACK OF UNITY BETWEEN THE A.F. OF L. AND THE C.I.O. HAS BROUGHT US TO THIS CRISIS. WE THEREFORE URGE THAT THERE BE IMMEDIATE JOINT ACTION WITH ALL OTHER LABOR ORGANIZATIONS IN THE COUNTRY TO DEFEAT THIS REACTIONARY LEGISLATION. DON'T BE ASLEEP AT THE SWITCH AND SUBMIT TO THIS DEATH SENTENCE BY DEFAULT=

HERMAN GELBER PRESIDENT LOCAL 306 MOVING PICTURE MACHINE OPERATORS UNION A F OF L.

.100 A F L C I O 306.

RECEIVED
APR 19 1947

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

WESTERN UNION (40)

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1947 APR 18 PM 7 5A

WILLIAM GREEN, PRESIDENT AMERICAN FEDERATION OF LABOR=

A F OF L BLDG WASHDC=

IN REPLY TO REQUEST FOR IMMEDIATE ACTION TO DEFEND OUR LOCAL UNIONS IN THE CURRENT ATTACK AGAINST US. RESPONSIBLE LOCAL A.F. OF L. LEADERS REPLY THEY ARE WAITING FOR ACTION TO BE INITIATED BY YOUR OFFICE. IT MUST NOW BE OBVIOUS TO ALL THAT ORGANIZED LABOR INCLUDING THE A.F. OF L. IS FACING A DEATH SENTENCE. LACK OF UNITY BETWEEN THE A.F. OF L. AND THE C.I.O. HAS BROUGHT US TO THIS CRISIS. FURTHER PROCRASTINATION AND DELAY IN TAKING ANY DECISIVE ACTION ANI THE MOBILIZING OF EVERY SINGLE MEMBER OF THE A.F. OF L. WIL MEAN ACCEPTING THIS DEATH SENTENCE BY DEFAULT. I URGE YOU IMMEDIATELY ORDER ALL AFFILIATED A.F. OF L. BODIES TO CALL MASS MEETINGS PROTESTING THESE LEGISLATIVE BILLS, REQUEST THEM TO SEND DELEGATIONS TO WASHINGTON AND URGE YOU ORDER NATIONAL ONE DAY STOPPAGE OF EVERY MEMBER IN THE A.F. OF L TO CONVINCE CONGRESS THAT THEY HAVE NO MANDATE TO DESTROY

STEVE D'INZILLO BUSINESS REPRESENTATIVE LOCAL
306 MOVING PICTURE MACHINE OPERATORS UNION.

D'INZILLO 306.

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

Mr Hushing

Charge to the account of A.F. OF L. $

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WESTERN UNION

1206

JOSEPH L. EGAN
PRESIDENT

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175
ACCOUNTING INFORMATION
TIME FILED

The following telegram, subject to the terms on back hereof, which are hereby agreed to

WASHINGTON, D.C.,
APRIL 19, 1947.

Fri

HERMAN GELBER, PRESIDENT
LOCAL 306 MOVING PICTURE MACHINE OPERATORS,
NEW YORK, NEW YORK.

WE HAVE OPPOSED THE ENACTMENT OF THE HARTLEY ANTI-LABOR BILL WITH ALL THE POWER AND INFLUENCE AT OUR COMMAND. WE APPEARED BEFORE COMMITTEES OF CONGRESS, MET WITH INDIVIDUAL MEMBERS OF CONGRESS, CALLED UPON ALL OUR AFFILIATED UNIONS TO HOLD MASS MEETINGS AND FILED PROTESTS AND PRESENTED CONVINCING FACTS AND INFORMATION IN OPPOSITION TO THIS LEGISLATION TO ALL MEMBERS OF CONGRESS. NOTWITHSTANDING THIS FACT THE HOUSE OF REPRESENTATIVES PASSED THE HARTLEY BILL BY A VOTE OF THREE TO ONE. WE MUST NOW CENTER OUR EFFORTS IN THE SENATE. WE SHALL DO THIS WITH ALL THE STRENGTH AND POWER WE POSSESS.

WILLIAM GREEN, PRESIDENT
AMERICAN FEDERATION OF LABOR.

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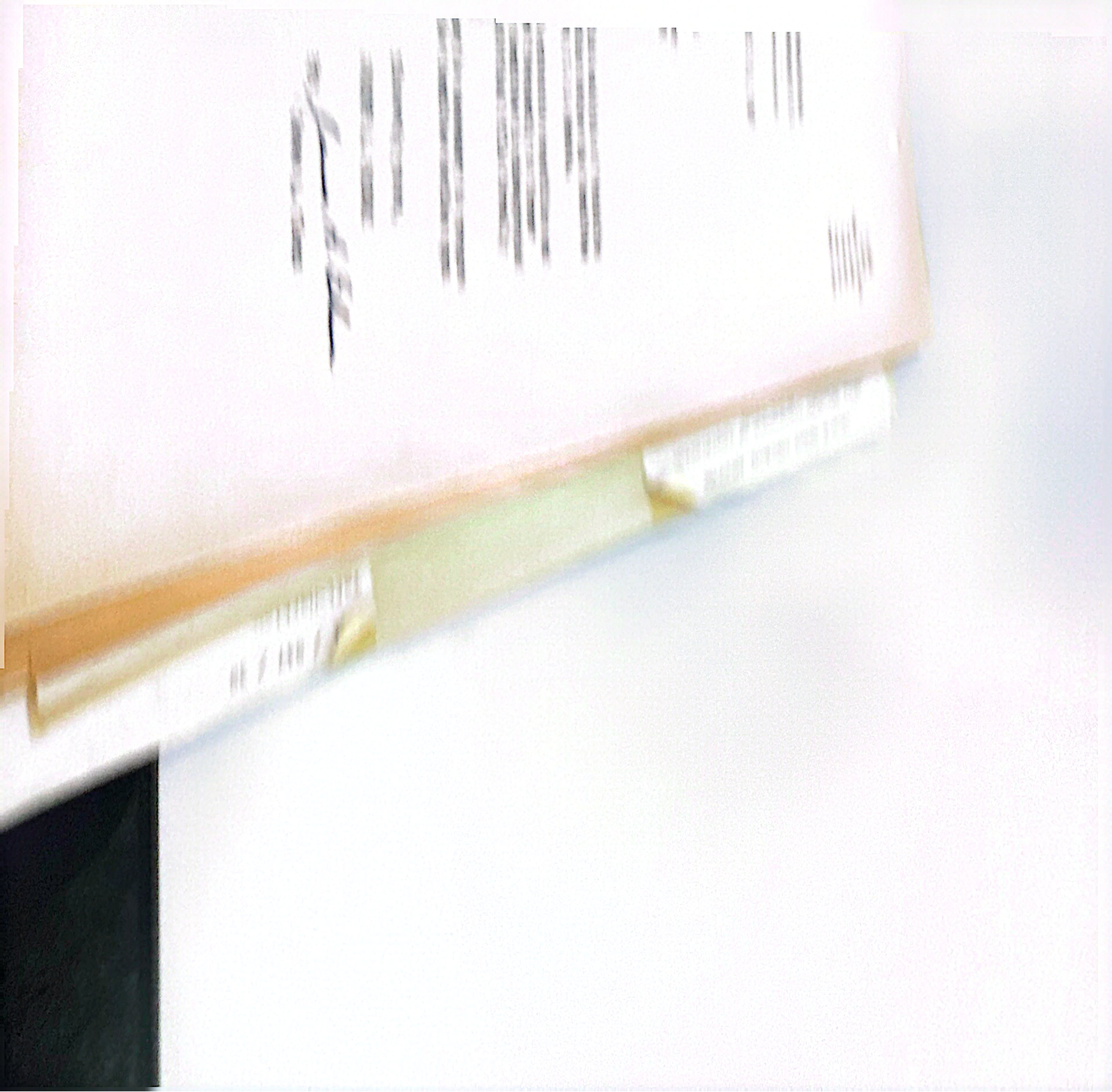

ANALYSIS OF COMMITTEE PRINT OF TENTATIVE BILL BEFORE COMMITTEE ON LABOR AND PUBLIC WELFARE - U. S. SENATE, 80TH CONGRESS, FIRST SESSION:

This draft of proposed labor legislation has not been approved by the Committee. It includes in omnibus form under six titles practically all of the anti-labor proposals which have heretofore been considered by the Committee at this session. Most of these proposals have been discussed at length in a statement filed by Mr. William Green, President of the American Federation of Labor, before the Senate Committee on Labor and Public Welfare to which reference will be made from time to time herein. It is to be noted that the Committee Print contains modifications of some former proposals and some new matter as will appear from the following analysis.

AMENDMENTS TO THE NATIONAL LABOR RELATIONS ACT

A large part of the tentative committee proposal (pages 1 to 35 of the Bill) deals with the amendment of the Wagner Act. In the first section of the Act the word "some" is inserted before the word "employers" in the first and second lines for the purpose of indicating that some but not all employers deny the right of employees to organize. The purpose of the amendment is obvious. The same section is further amended by adding a paragraph to the statement of public policy. The declaration is in general that certain practices of organized labor have the effect of burdening commerce through strikes and that the elimination of such

practices is necessary. While this declaration is quite general and adds nothing constructive to the declaration of policy already contained in the Act, it appears to have been inserted in justification of later proposals to establish certain unfair labor practices on the part of labor organizations. Since these proposals to establish unfair labor practices on the part of labor are wholly unwarranted and destructive of the objects of the Wagner Act, it is obvious that no such addition to the declaration of policy in Section 1 should be made.

Definitions

Section 2 of the Act is amended to make certain that the term "person" includes labor organizations and the term "employer" is defined to limit a group of employers acting in association to those included in the same metropolitan district or the same county for the purposes of collective bargaining. Only such employers as voluntarily associate together are included. Individuals employed in agriculture or as supervisors are excluded from the coverage of the Act. The definition of "representatives" is modified for the purpose of requiring the Board to certify Local Unions as bargaining representatives.

The term "supervisor" is given a very broad definitio It would include many persons in near supervisory capacity and others who cannot properly be regarded as supervisors. It wou include inspectors, lead-men, time keepers and guards.

The provisions of the section invite abuse. For example, it is obvious that most any watchman might be classed as a guard if a part of his duties includes the enforcement of rules for the protection of property and health. Thus it is clear that many groups among those most in need of the protection of the act will be deprived of its benefits. For a further detailed discussion of similar provisions regarding elimination of supervisory employees see pages 3 and 4 of the mimeogrpphed statement of President Green before the Committee.

The term "plant" is defined to include a factory or mine to which at least 50 employees regularly report. This definition must be considered in connection with the holding of elections in separate plants. The term "professional employee" is also broadly defined. The term "agriculture" is defined to include virtually all farming in all its branches performed by a farmer including forestry and lumbering operations and delivery to storage or market for transportation.

The Board

The Board itself is increased from three to five members with terms of five years which may sit in panels of two or more members. The salaries of Board members are raised from $10,000 to $12,000 a year. The Review Division is abolished but each member will perform somewhat the same functions with the aid of a staff of legal assistants. The Board may not appoint individuals for the purpose of economic analysis.

The Union Shop

Section 8(3) of the Act containing a proviso preserving the union shop has been drastically modified as appears on pages 14 and 15 of the Bill. As so modified it would outlaw the closed shop, by penalizing a contract which required union membership after thirty days of employment under certain very rigorous and unreasonable conditions. A union shop could not be negotiated until an election was held in which two-thirds of the employees authorized the same, which two-thirds should not be less than a majority of the employees in a unit. Furthermore, such a contract could not require membership in a labor organization unless membership was available on the same terms applicable to others. Membership could only be withheld or terminated in case of failure to pay dues and initiation fees. These provisions constitute a wholly unwarranted and unworkable interference with the internal affairs of labor organizations. The entire amendment is indefensible and violative of democratic majority determination of issues. Nearly all of the arguments against the outright destruction of the union shop are applicable to these provisions. And it is certain that they would result in confusion, unrest and injustice. The union shop is discussed at length in President Green's mimeographed statement to the Committee referred to above, pages 12, 13, 14 and 15.

A proviso is added to Section 8(5) to the effect that it shall not be an unfair labor practice for an employer to

refuse to bargain concerning a union shop. This provision further weakens the provisions of the Bill pertaining to the union shop. It is wholly unwarranted and illogical. An employer should be required to bargain in good faith with respect to all negotiable disputes especially in view of the fact that the law does not compel the adoption of any specific terms.

Section 8)b), pages 16 and 17, sets forth a number of unfair labor practices on the part of a labor organization or its agents. Interference with employees in the selection of bargaining representatives is prohibited. The full extent of this provision is vague. It may be interpreted to prevent perfectly proper efforts to induce employees to support the union. A provision is also included which prevents enforcement of a union shop so long as an individual tenders dues and initiation fees to the union. Such provision manifestly makes it possible for persons seeking to undermine the union and disrupt bargaining relationships to remain in employment with free license to engage in any destructive and disturbing practices. In addition, a union may not refuse to bargain collectively.

A provision is included to prevent a parent organization from attempting to require a local of that organization or other representative of employees to include any particular terms or provisions in a contract relating to wages, hours or conditions. Such a provision is most outrageous and absurd. It is designed to cause confusion and hamstring decent collective bargaining on behalf of employees. Its purpose appears to be to thwart industry-wide and regional bargaining. See pp. 24 & 25 of mimeographed statement to the Committee.

In addition, provision is made that no unfair labor practice shall be found from statements of views or arguments written or oral so long as they contain no threat of reprisal or force. Under this provision an employer may make anti-union statements under circumstances deliberately calculated to coerce his employees and thwart the purposes of the Act and yet nothing can be done about it so long as he does not physically include a threat of reprisal or force therein. Such a provision makes a mockery of efforts to prevent employers from putting their employees in fear and renders it virtually impossible to prevent unwarranted and dictatorial interference with the selection of representatives. Lastly, it is provided that an employer is not compelled to make a concession. This provision also constitutes wholly unwarranted and unreasonable ~~meddling in~~ interference with the normal processes of collective bargaining.

Practically all of the above mentioned unfair labor practices by labor organizations set out in Section 8(b) have been discussed at length in the statement of President Green to the Committee, pages 18 and 19, to which reference is made.

Representatives and Elections

In Section 9(a) pertaining to the functions of a bargaining representative to bargain with respect to rates of pay, wages and hours of employment, the words "conditions of employment" are stricken and the words "working conditions" used in their stead. The purpose of this change is not clear but there is danger that working conditions may be given a narrower

construction than the words "conditions of employment". A bargaining representative in the interest of the settlement of disputes should have wide bargaining authority and the amendment appears to be unwarranted. It is further provided that grievances may be adjusted without intervention of the bargaining representative. Such a provision is likely to result in abuse by some employers who will seek to undermine the prestige of the union by bargaining individually with respect to grievances.

Section 9(b) is modified to provide that there should be no multiplant unit unless a majority of the employees in each plant unit selects the same representative. Apparently, if separate locals of the same organization were chosen in two or more plants, such plants could not be in the same unit. Professional employees are given a choice of whether they shall be in a general unit or in a single separate unit. Likewise a craft unit may not be considered inappropriate unless a majority vote against separate representation. Thus, craft units cannot be forced into larger units against the desire of the employees.

Provision is made for elections to choose a bargaining representative and also for the purpose of decertifying a representative. Likewise, petitions may be filed by an employer. Provision is made that the board shall deal with nationally affiliated unions and independent unions without distinction and regardless of past rulings in respect to the status of such independent organization. Thus, the discretion

and judgment of the board are interfered with in favor of arbitrary, fast rules which may very well result in injustice.

No election is to be held within twelve months of a preceding election. Employees on strike shall not vote unless they are entitled to reinstatement. provision is also made for run-off and consent elections. Similar provisions to those contained in Sections 9(a) and 9(b) have been discussed at length in President Green's statement to the Committee, pages 20, 21 and 22.

Section 9(e) is a new provision for elections to authorize the limited union shop allowed under the Bill. Such an election cannot be held within twelve months of a prior similar election. It is not applicable where a present contract exists but it would prevent the renewal or extension of any such agreement. The entire procedure constitutes a gross violation of the right to bargain collectively and a hindrance to the entire process of collective bargaining. It would be burdensome in the extreme requiring elections even where no one questioned the status of the parties desiring to contract. The provision constitutes a hindrance and introduces further difficulties instead of promoting the orderly settlement of disputes.

Procedure

In Section 10 provision is made to permit state boards to retain jurisdiction in certain cases. Complaints shall not be issued based upon unfair labor practices occurring more than

six months prior to the filing of a charge with the Board. It is further provided that back pay may be required of a labor organization if it is responsible for discrimination against an employee. This provision is intended to strengthen former provisions of the Bill against unfair labor practices by labor organizations principally in connection with requiring an employer to discharge an employee pursuant to a union shop contract. Further provision is made to prevent the Board from giving consideration to the facts and inferences which may naturally exist distinguishing affiliated and unaffiliated unions.

Provision is also made to give the courts greater authority in determining facts in a Board case. By striking out the provision that the findings of the Board shall be conclusive "if supported by evidence" and inserting the words "unless contrary to the weight of the evidence." This provision is a mere invitation to the court to substitute its own inexpert and perhaps ill-advised findings for the findings of the Board which is experienced in the problems involved. It would encourage appeals and litigation.

Section 13 denies remedies under the Act in the case of a strike to compel an employer to bargain with a non-certified representative or to violate a law. Similar provisions are discussed at length on page 23 of statement previously filed with the Committee.

FEDERAL MEDIATION SERVICE

Section 201, page 35 of the tentative Bill, creates a Federal Mediation Service in charge of a director appointed by the President. The mediation and conciliation functions of the Department of Labor are transferred to the Federal Mediation Service. The Service may offer its services in case a dispute arises which threatens a substantial interruption of commerce. It may seek to induce the parties to submit to voluntary arbitration where necessary. The use of ~~this~~ voluntary agreements for adjustment of disputes is encouraged. Employers and employees are placed under an obligation to make every reasonable effort to reach agreements and to maintain agreements. When a dispute arises over the terms of a collective agreement and a conference is requested by one party, the other shall promptly arrange for such conference. The parties shall follow procedures undertaken by the Federal Mediation Agency for the purpose of settling a dispute. A contract cannot be terminated or modified unless a written notice is served on the other party sixty days prior to expiration or modification. Likewise, the party must offer to confer and negotiate and notify the Mediation Agency. The terms of the existing contract must be maintained for sixty days after such notice is given or until the expiration date of the contract, whichever occurs later. If an employer fails to perform these duties he shall be deemed to have committed an unfair labor practice. If a labor organization causes

a strike prior to the expiration of the sixty day period it shall be deemed to have committed an unfair labor practice and the National Labor Relations Board is authorized to use its powers to prevent and restrain such practices. Any employee engaging in such a strike will lose his status under the National Labor Relations Act and will therefore be unprotected against dismissal. Obviously these provisions are designed to give the employer the advantage in case of dispute where a strike is threatened. With regard to the proposed sixty-day cooling off period the discussion contained in the mimeographed statement formerly submitted to the Committee relating to cooling-off period, page 1, ~~are~~ is apropos .

Provision is also made for filing of copies of collective agreements with the Department of Labor and for the supplying of factual information by the Bureau of Labor Statistic to the Federal Mediation Agency.

Restrictions on Payments to Unions

The Bill declares it shall be unlawful for an employer to pay or deliver or to agree to pay or deliver any money or other thing of value to any representative and that it shall be unlawful to receive any such payment. Starting from this provision the Bill then sets out a number of exceptions appearing on pages 44 to 47. It is to be noted that among the exceptions the check-off has been included provided the employer has obtained a written assignment which shall not be

irrevocable for more than a year. Without going into a detailed discussion of the provisions which have been discussed at length on pages 2 and 3 of the mimeographed statement formally submitted to the Committee in connection with Senate #55, it may be observed that the entire provision is drawn in a most unorthodox manner outlawing conduct of wide scope and then attempting to specify specifically certain exceptions which shall be lawful. Proper treatment of the problem would require that only such practices as are sufficiently reprehensible and important to receive the attention of Congress as distinguished from state law-making bodies should be considered, rather than to lay down a legal drag-net outlawing perfectly innocent practices and normal transactions. Manifestly, these provisions are restrictive of the rights of all concerned and impose a legal straight-jacket on bargaining efforts, especially with respect to trust funds for the benefit of employees.

Boycotts and Combinations

The provisions of the Bill in regard to this subject appear on pages 47 to 50. They have been discussed fully in mimeographed statement to the Committee in connection with similar provisions in other Bills. Such discussion will be found on pages 5 to 12 under the heading "Prohibitions Against Boycotting and other Unlawful Combinations or Conspiracies."

Suits By and Against Labor Organizations.

This subject has been fully discussed on pages 4 and 5 of mimeographed statement to the Committee. It is to be noted that the provisions of the Bill would encourage litigation and strife; the Federal Courts would be over-burdened with the type of business which they are not well suited to handle effectively. Court actions usually are of no help in adjusting labor relations problems. Usually by the time any decision is rendered situations have changed ~~from~~ rendering the same academic. Under existing law suits may be brought against labor organizations wherever warranted in state courts. There appears to be no useful purpose to be served by the provisions of the proposed Bill and it is probable that the enactment of such provisions will be a further disturbing influence in the industrial relations of the country.

Registration of Labor Unions

This subject is dealt with in the Bill, pages 52 to 54. Similar provisions have been discussed on page 12 of mimeographed statement to the Committee.

Committee To Study Problems Affecting Labor

The tentative Bill provides (pages 54 to 58) for a joint Committee on labor management relations to be composed of seven members of the Senate and seven members of the House to conduct a thorough study of the entire field of labor management relations. The Committee may appoint a council of

advisers representing employers and employees and shall report to the Senate and House of Representatives not later than February 15, 1948. It shall hold hearings and may require the attendance of witnesses and the production of books in the taking of testimony. It is believed that further study of the problems involved is imperative.

Injunctions

The Bill contains an entirely new provision for the issuance of injunctions, whenever the Attorney General believes a threatened or actual strike or lock-out affecting substantially an entire industry will imperil the national health or safety. Such an injunction would be obtained at the suit of the United States, in District Courts of the United States, and the court may make other orders appropriate in connection with such injunction to insure the effectiveness of the remedy. Such injunction may be issued not withstanding the Norris-LaGuardia Act but may be reviewed on appeal by higher courts. It shall not require an individual to render ~~xxxxx~~ service without his consent.

Whenever such injunction is issued it shall be the duty of the parties to the dispute to make every effort to adjust their differences with the aid of the Federal Mediation Service. At the end of sixty days unless settlement has been made a report shall be made by the Director of the Mediation Service on the position of the parties to the dispute which shall be available to the public. Within fifteen days thereafter

the National Labor Relations Board shall hold an election on the question of whether the employees desire to accept the final offer of the employer and shall certify the results thereof to the President. Upon such certification the injunction shall be dissolved.

Such a provision, of course, is subject to all of the objections which apply to any cooling off period and in addition is subject to constitutional objections in that the aim of the ~~professions~~ provision is to compel employees to work against their will for 75 days and to prevent employees and union representatives from exercising their constitutional rights for a similar period. It is designed to bring into a dispute on the side of the employer the power ~~f~~ and influence of the Government and the courts for the purpose of hindering and forestalling the efforts of working men and women to improve their status, to restrain citizens in the exercise of their constitutionally guaranteed rights and as such does not contribute anything to the solution of industrial problems. It is a measure totalatarian in spirit and encourages the return of government by injunction.

The remainder of the Bill, pages 61 and 62, is concerned with various definitions which are self-explanatory.

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AMERICAN FEDERATION OF LABOR

LONG DISTANCE TELEPHONE NATIONAL 2870-1-2-3-4
CABLE ADDRESS AFEL

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President, William Green
Secretary-Treasurer, George Meany
A. F. of L. Building, Washington, D. C.

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Carpenters' Bldg., Indianapolis, Ind.
Second Vice-President, Harry Bridges
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Twelfth Vice-President, Daniel Tobin
1219 Broadway, New York, N. Y.
Thirteenth Vice-President, John L. Lewis
United Mine Workers' Bldg., Washington, D. C.

Washington 1, D. C.

April 23, 1947

TO FEDERAL LABOR UNIONS DIRECTLY AFFILIATED WITH
THE AMERICAN FEDERATION OF LABOR

Dear Sir and Brother:

The vicious campaign to destroy the American Trade Union Movement by legislative action has now reached the point where the

AMERICAN FEDERATION OF LABOR

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Secretary-Treasurer, George Meany
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400-402 Commerce Bldg., Kansas City, Mo.

Tenth Vice-President, M. F. Ryan

THE MANDATE OF BIG BUSINESS

An Address to the Nation

BY GEORGE MEANY, American
Federation of Labor Secretary-Treasurer

Delivered April 16, 1947,
Over the Coast-to-Coast Network
of the Mutual Broadcasting System
From Station WOL, Washington

The full text of Mr. Meany's address was as follows:

* * *

Our nation is the strongest in the world. We are strong for a number of reasons, but the No. 1 reason for our strength is that we are a nation of free men.

America's strength and the fact that we are the symbol of liberty to the peoples of the whole world have combined to give us a position of world leadership. We have served notice that we stand for freedom not only here at home but also for liberty, democracy and the right of governments and peoples everywhere to be protected against the enslavement of totalitarianism.

Today there is serious danger of America's position as the champion and bulwark of freedom being undermined through action of our own Congress. This would be the inevitable effect if Congress were to pass the labor legislation now proposed by the majority party in the House of Representatives.

The bill I refer to is one which has been approved by the Republican Policy Committee of the House. This measure emanates from the House Labor Committee and is being called the Hartley bill. The bill should be known as the National Association of Manufacturers bill, which in fact it is.

The Hartley-N.A.M. bill now before the House of Representatives is designed to bring about the destruction of free trade unionism in our country. It proposes to achieve this nefarious purpose by enacting into law the program adopted by the National Association of Manufacturers last December.

The Hartley bill would definitely effectuate the N.A.M. program. For example, the N.A.M. urged that "the protection of law should be extended to strikers only when the majority of employees in the bargaining unit, by secret ballot under impartial supervision, have voted for a strike in preference to acceptance of the latest offer of the employer. The Hartley bill accepts this proposal in toto---in fact, almost word for word.

This situation prevails all through the bill. Throughout the sixty-eight pages of the Hartley bill we find the ideas and the very language of the N.A.M.'s anti-labor program lifted bodily and incorporated into the bill.

There can be no doubt on this score. The committee minority has stated quite definitely, and I quote:

"During the period of the hearings the representatives of the N.A.M. working behind the scenes were writing the legislation."

This quote refers to the so-called Hartley bill, now fraudulently offered as the brainchild of Mr. Hartley himself and his fellow committeemen of the majority.

The N.A.M. is evidently not concerned with the world position of the United States of America. The N.A.M. is clearly not disturbed that enslavement of the plain citizens of America would destroy our nation's position as the standard-bearer of freedom in the effort to halt the further expansion of communism.

The N.A.M. doesn't seem to care about anything except profits, more profits and still more profits. Last year the corporations of America as a whole made far more money than in the highly profitable war years; but the N.A.M. wants more, and this bill is designed to achieve that greedy objective at the expense of the nation's workers.

(more)

Our government has adopted a policy of preventing the spread of communist influence abroad and at home. It has been announced and reiterated that the Administration is determined to carry this policy out in an effective manner. The overwhelming majority of the American people are in complete sympathy with this program of the government. Most Americans have no use whatsoever for the hateful tenets of communism or any other form of totalitarianism.

This anti-communist program will be torpedoed if the Hartley bill is enacted into law. American workers will not cheerfully accept any statute which compels them to work against their will. They will resent and resist such a flagrant violation by Congress of the Constitution of the United States---in particular, the Thirteenth Amendment, which forbids involuntary servitude.

This bill will bring more recruits into the ranks of those opposed to the American way of life than the Communist Party of the United States has been able to enroll in thirty years.

Communism thrives on chaos, disorder and oppression, and this bill---sponsored and written by attorneys for greedy anti-labor employers---will surely bring about chaos, disorder and oppression.

At a time when our non-partisan foreign policy is directed toward making America a vital influence on the side of human liberty in world affairs, it is little short of criminal to create a condition here at home that will render our nation completely impotent as a world power. A nation torn asunder by internal strife cannot exercise leadership in world affairs.

This measure if enacted into law will weaken our internal economy to the point where America can no longer command respect in its dealings with the other nations of the world. This would no doubt please Molotov and Stalin. This is what the Communist Party and the actual and mental foreigners who are associated with it would most ardently desire. Henry Wallace would giggle with glee.

Mr. Hartley and many of our Big Business newspapers state that anti-labor legislation must be enacted by this Congress because of a so-called "mandate from the people." It is claimed that the November election results constituted a mandate to clamp handcuffs and a straitjacket on the American wage-earner.

There is not a particle of truth to any such claim.

The fact is that last year's election mandate was to eliminate bureaucracy, to wipe out regimentation. It was a protest against high prices and administrative failures in price control. It was a protest against the very bureaucracy and regimentation that this legislation would bring about.

It was a protest against the failure of Congress to pass bipartisan housing legislation so people could have a roof over their heads. It was a protest against the complete inability of Congress and the OPA to do anything when the country's meat producers went on strike against the American people. Those were the issues involved in the election last November.

It seems strange to see leaders of a party which has been assailing regimentation for fourteen long years now advocating regimentation for the 40,000,000 wage-earners of the nation.

Those politicians who are now attempting to put America's workers in a straitjacket of legal restrictions that would virtually chain them to the workbench forget one very important thing---the American worker's love of liberty. They forget that the free workers of our nation outproduced the slaves of totalitarianism. They forget, above all, that even if this N.A.M. bill was enforceable, it still would not help production.

Perhaps the N.A.M. and its Congressional agents might even succeed, through the brutal methods of totalitarianism, in making slaves of America's workers. But what good would that do for the N.A.M. and its constituent corporations, interested as they are solely in greater and ever greater profits? They would find their profits not enhanced but reduced.

The American worker would not produce much if he were depr

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of his freedom. The N.A.M. and its agents would find out, as the dictators have found out, that forced labor is not productive labor.

The results that the authors of this bill desire to achieve are best described by a statement issued by Congressman Lesinski, speaking for the minority:

"This bill would return us to the dark ages of labor exploitation. It is only the beginning. After the unions are broken and split and formed into a Labor Front for exploitation, then we will see the return of child labor. Small boys will once more be fed into the mines. Young girls will sweat in the garment shops. Cheap labor will be achieved. The yellow-dog contract will reappear. The blacklist will once more become a weapon against the livelihood of the worker."

Thus states a group of Congressmen who are aware of the real purposes behind the program of Mr. Hartley and those whose interests he represents.

If it were possible for American labor on the one side and the profit-greedy employers and their spokesmen in Congress on the other side to battle this out for the next two or three years, we could perhaps afford to suffer the chaos and disorder that would result. It would perhaps be worthwhile, in the long run, to let this internal battle take place---even with all the suffering it might entail---in order to clear up once and for all in the minds of the employers and their agents the question of whether or not American workers are by right entitled to maintain free trade unions for their own benefit and protection.

But unfortunately we cannot build a wall around America and for the next two or three years and indulge in a private fight of this kind. The world in 1947 is looking to America for leadership. America can furnish that leadership only by remaining strong. America cannot remain strong if it is torn asunder by the bitter strife which will surely ensue if the Hartley bill becomes law.

The legislative theory behind this measure, if it can be dignified by conceding that it is the result of any legislative theory, seems to be that the key to industrial peace in this country is the weakening and ultimate destruction of trade unions. Unions are all right if they can be rendered so weak that they can no longer carry out their obligations to the worker. The worker is to be protected in this bill by the destruction of his union.

Well, I am sure that the American worker is not going to suffer his union to be destroyed. He knows that the high standard of life enjoyed by the wage-earners of America did not come as a gift from the employer. He knows that he is the best-paid, best-housed and best-clothed worker in the world because of his right to maintain free trade unions as an instrument to achieving a better life.

I am sure America's workers will fight to retain these rights because, in the final analysis, their destruction means the destruction of our form of free society.

There is one aspect of this anti-labor proposal that is perhaps more disturbing than any other. This is the political aspect.

The American wage-earner has been told over and over again down through the years that the Republican Party was the party of privilege, of profit---the party of Wall Street and the big corporations. The American worker has hesitated to believe these charges because he was convinced that this was the one country in the world where the class struggle could not be a national political issue. But when we scrutinize the origin of this vicious anti-labor proposal when we hear the paid spokesmen for Big Business strongly urging its passage on the air, when we see the large corporations using the power that comes with a swollen treasury proposing its restrictions through full-page advertisements in our daily press, when we see and hear all these things and then, in addition, hear the official

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spokesmen for the Republican membership in the House of Representatives not only endorsing this bill but boasting of their ability to enact it into law, we wonder if the class struggle is about to shift from the economic to the political field.

For nearly three-quarters of a century the American Federation of Labor has maintained itself as a strictly non-partisan organization--representing workers as workers, not as parts in a political game. I am sure that our organization desires to continue as such.

In the face of the political aspects of this proposal to destroy trade unionism, the question arises as to whether or not we will be compelled by force of circumstances to enter into political action in order to protect the future of the wage-earners of our country who in themselves constitute the vast national wealth of which Americans so often boast.

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AMERICAN FEDERATION OF LABOR

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April 21, 1947

TO FEDERAL LABOR UNIONS DIRECTLY AFFILIATED WITH
THE AMERICAN FEDERATION OF LABOR

Dear Sir and Brother:

The vicious campaign to destroy the American Trade Union Movement by legislative action has now reached the point where the very existence of free organizations of labor is threatened. The American Federation of Labor is determined that the fruits of seventy-five years of trade union effort shall not be wiped out by the enactment of ill-conceived malicious anti-labor laws. The repressive legislation now before Congress is inspired by the profit greedy manufacturers who are now daily engaged in gouging The American people through the medium of higher and ever higher prices for the necessities of life.

The American Federation of Labor is determined to fight this evil threat which today hangs over the head of every American worker. The Executive Council today unanimously voted to levy a voluntary emergency assessment of fifteen cents per member payable immediately on our entire membership to meet this threat by every legitimate and legal means of public expression available to us. We intend to conduct an extensive and educational publicity campaign through the medium of radio and the public press.

Your local union is urged to make its contribution immediately. We urgently request that your organization do its full part in this time of crisis in the life of our Federation.

Fraternally yours,

Executive Council, American Federation of Labor

William Green
President

George Meany
Secretary-Treasurer

protection of policy. The statement of policy is explicit in outlining the Federal government's intervention into the process of collective bargaining. The government for the first time in our history is to be given authority, not only to intervene when free and voluntary collective bargaining fails, but also to inject itself into proceedings presumably to negotiations and to regulate the conduct of employees in their relation to each other and to their relationship with management. One of the stated purposes is to give "the employees themselves a direct voice in the bargaining arrangements with their employers. Thus the government would assert a policy of opposition to the very process whereby democratically chosen representatives of employees are authorized by such employees to negotiate and contract on their behalf. In other words, the purpose of the Bill is to undermine and disrupt the process of collective bargaining itself. In this the Bill reaches at the very foundations of voluntary representation which is a part and parcel of the free enterprise system.

TITLE I -- AMENDMENT OF NLRA.

Regulation of Collective Bargaining. Section 2 provides for detailed regulation of the steps taken in the collective bargaining process. This includes a legal requirement of five separate conferences between the employer and his employees or their representatives, within a thirty day period following the initial conference. Apart from the absurdity of prescribing by law how the parties should arrange the course of their negotiations and what consecutive steps they should take, it is untenable that what the Bill purports to be "collective bargaining" would extend to a procedure which is not collective bargaining at all. As described in the Bill, the procedure is not confined to duly chosen representatives of the employees, but may extend to the dealings between the employer and the employees themselves.

Strike Vote. -- The workers are not expected to notify the employer or the employer to notify the workers about the impending strike or lockout. Instead the notice is to be sent to the Administrator of the NLRA. It is significant that if a threatened strike is involved, the Administrator must "promptly notify the employer". Notice of a lockout by the employer, however, is not to be conveyed to the employees. The statement of the employer's position in the dispute must be sent by registered mail "to the representative". Since "the representative" is defined to include any individual, this means a requirement for an employer to mail his views by registered mail to every employee. A government supervised vote is then to be taken in each disputed case. A requirement is also included for the consent by the employer regarding the procedure to be followed in the conduct of the strike vote. The employer is thus directly injected in the procedure whereby the employees make their decision. The ballot itself is prescribed by law. It mentions only the employer's last offer and makes no reference to the position taken by the union. The employees are thus precluded from the free exercise of the right which Congress cannot constitutionally deny them to freely pass upon the policies and decisions made by their own chosen representatives.

Negotiations Drastically Limited. -- The Bill specifically limits the collective bargaining procedure to stated items to be negotiated. Thousands of agreement provisions which today provide for direct contribution by the workers through their union to greater efficiency, improved production and other forms of labor-management cooperation will no longer be an authorized subject for negotiations. A multitude of other existing agreements would have agreed provisions essential to the maintenance of industrial peace expunged as the result of this provision.

Supervisors. -- This term is defined in order to exclude from collective bargaining employees classed as supervisors. The definition is so broad as to exclude a major proportion of wage earners from the collective bargaining process. For example, almost any employee in an establishment may be said to be given by the employer information that is confidential and is not available to the public, the competitors or the employees generally. Yet any employee who has access to such information is termed as a "supervisor".

Featherbedding. -- The adoption of the proposed language would make it legally impossible for labor to reach an agreement with an employer

requiring proper manning of the job necessary to meet minimum requirements of safety and health of the employees. This section is so loosely and viciously drawn as to extend far beyond the relationship between labor and management and would, if strictly applied, make the payment of any taxes imposed by Congress a "featherbedding practice".

Multiplicity of Agencies. -- The Bill creates a Labor-Management Relations Board and an Administrator of the National Labor Relations Act. The Administrator is given the duty to prosecute complaints of unfair labor practices before the Board. At the same time, the Administrator is also given the quasi-judicial function of investigating representation petitions. He is also to act as the Agent of the Board, before which he appears as a prosecutor, in making application to the Courts for enforcement of orders of the Board. This new structure is, by its terms, bound to lead to confusion so vast that no employer and no union would be able to proceed with the normal conduct of employer-employee relations without a constant danger of being in violation of some requirement of the law.

Rights of Employees. -- Section 7(b) gives each member of a labor organization the right to be free from "unreasonable or discriminatory" financial demands of such labor organizations. It also requires to have "the affairs of the organization conducted in a manner that is fair to its members". None of these terms is defined and no one is given the responsibility to interpret their meaning. What is unreasonable or discriminatory? What constitutes fair manner of conduct? The Bill is silent on these questions and gives no indication by whom or in what manner they should be answered.

Unfair Labor Practices of Employers. The Bill dilutes the present requirements of the NLRA and in addition outlaws the check-off of dues. Today approximately six million workers, or 41 percent of all employees under agreement, are covered by check-off provisions voluntarily agreed to by employers. No one before either the Senate or the House has criticized the operation of the existing check-off agreements.

Welfare Funds. -- The Bill outlaws employer contributions to any health, welfare or benefit fund, whether or not such a fund is administered by the union alone or "in conjunction with any other person". Even if a union has an indirect control in such a fund and the employer is a party to it, no employer contributions toward such a fund can legally be made.

Unfair Labor Practices of Labor Organizations and Individual Employees. The Bill includes the provision making it unlawful for unions to seek to compel anyone to become or remain a member of a labor organization. This provision, for many years sought by the NAM, is aimed directly against union organization. The Bill would regulate initiation fees or dues and prohibit any payment of a tax required as a condition of employment. If narrowly applied, the provision of Section 8(c)(2) would make the collection of any union dues unlawful. Furthermore, the Bill would grant the right to any member to resign from the organization at any time making the maintenance of a stable union membership an undesirable objective, if not an impossibility.

Benefit Plans. -- The Bill prohibits the maintenance by the union of a compulsory insurance or benefit plan. Yet there is nothing in the Bill to prevent the employer from imposing compulsory group insurance or other benefit plan upon his employees.

Expulsion or Suspension of Members. -- Detailed specifications are given forbidding unions to expel or suspend any member except for certain very limited reasons. A union is permitted to expel a member upon conviction of a felony. Legally it could neither suspend nor expel any member upon conviction of grand larceny, treason or other unlawful acts other than felonious act.

Union Security. -- The Bill outlaws the closed shop and places strict limitations on the union shop. Section 8(c)(7) requires the acceptance to union membership of anyone, regardless of qualifications Other provisions authorize union shop agreements providing that an employee is required to join the union not less than 30 days after commencement of employment, that a majority of employees have voted by government ballot for the union shop, and that the agreement was not reached as a result of a strike or threatened strike. Many other obstacles face any union seeking adequate union security. The union shop is taken out of the bargaining process so that it is permissible

only when voluntarily agreed to by employers. The bill appears to require that employers vote on all existing union shop agreements. Section 9 of the bill eliminates the present requirement of Section 8 of the National Labor Relations Act specifically authorizing the union shop. The validity of a union shop agreement is limited to two years, after which time the entire machinery, including the government supervised ballot, must be invoked again.

Certification of Representatives. -- Section 9 of the proposed bill drastically modifies the established procedure for the settlement of cases concerning representation. The changes that have been made are not supported by evidence presented to the Congressional Committees in the course of their hearings on proposed labor legislation. Instead of having an investigation made whenever a question concerning representation arises, as provided in the Wagner Act, the investigation is to be made only on written application by a labor representative representing at least thirty percent of the employees in the unit. In contrast to this, an employer may ask for an investigation and an election by merely alleging that any individual has presented to him a claim that he represents a majority of the employees. It is clear that no matter what the purpose of the provisions of this section of the Bill, it attempts to settle by detailed legislation problems which can only be properly resolved as they arise in each case by the National Labor Relations Board itself.

Industry-Wide Bargaining. -- Section 9(f) makes ineligible for an election employees of two or more competing employers unless the union represents less than 100 employees of each employer or unless the employers' plants are less than 50 miles apart. In industry after industry, these provisions will serve to eliminate trade associations as collective bargaining agents for employers in a related field, thus wiping out orderly collective bargaining built up over a period of years in large areas of peaceful labor-management relations. By stating a complex standard of eligibility for certification, the Bill throws wide open the door to a mass of litigation and administrative decision as to what constitutes the proper basis for certification. By the time all the questions are answered as to who competes and who doesn't; how many employees are regularly employed; and how far apart is one plant from another, the time for orderly designation of representatives will have long since passed and the industrial unrest become widespread.

The Election Ballot. -- Under the present procedure of the National Labor Relations Board, the form of the ballot is determined as the result of an investigation of the Board which decides whether any claim for representation is substantial or valid. The Bill requires that space be provided on the ballot for any choice of representative whether or not such a representative has anything to do with the existing labor-management relations. It will not be surprising if this procedure results in write-in votes designating a popular movie star as the representative, or some person unable or unfit to perform the function of effective labor representation.

The Use of the Injunction. -- After the complex and extended administrative procedures of the Board proposed by the Bill have been carried out, the complaints of unfair labor practices are made subject to court enforcement. However, the decisions of the Board are limited in a number of ways, including the provision which would give a company union the same status as a bona fide labor organization independent of employer influence or domination. The Bill makes discrimination against employees for union activity extremely difficult to prevent by forbidding the Board from orderingthe reinstatement of any individual as an employee "unless the weight of the evidence shows that such individual was not suspended or discharged for cause". In all court enforcement the use of the injunction is made applicable in labor disputes by amending the Norris-LaGuardia Act.

Unlawful Concerted Activities. -- In addition to the provision of unfair labor practices in which employees and labor organizations are prohibited to engage, Section 12 contains an additional list of unlawful activities directed against unions. Section 12 thus makes the amended Wagner Act heavily balanced against labor in favor of the employer. This section provides, among other things, that it shall be unlawful for any union or union member to use violence or obstruct entrances in the course of picketing or to engage in any sympathy strike, jurisdictional strike, monopolistic strike or illegal boycott or in a strike to compel featherbedding practices, or in a strike to compel recognition of an uncertified union, or in a strike in protest of unfair labor practices. All of the foregoing activities are made subject to criminal penalties under the anti-trust laws, to suit

title denies one to suits for injunction, the Norris-LaGuardia Act being expressly repealed in this respect.

Even more dangerous is the fact that in petition it empowers would bring activities subject to state and local law within the sphere of federal jurisdiction and federal regulation. The use of force or violence is traditionally subject to local law enforcement. Section 12 makes such acts federal offenses. The scope and manner of picketing is regulated by state and local law. Section 12 would make picketing subject to federal control. In addition, Section 12 outlaws various forms of strikes. It also makes labor organizations liable for suits by employers and subject to the court injunction. The provisions of the Norris-LaGuardia Act are made applicable to any situation covered by the petition. This not only eliminates the use of the injunction in labor disputes, but may even permit the employer to impose a yellow-dog contract upon his employees.

It is important to note that under this title, when a union engages in an unfair labor practice, it promptly loses the right to its very existence, its existence becoming illegal for one year. Of course, no employer found guilty of an unfair labor practice is required to go out of business for a year. The employer must merely cease and desist from continuing such an unfair labor practice and take such affirmative action as may be necessary to comply with the law.

Enforcement of one right through the denial of another right is bad law. It is self-defeating. The Wagner Act never contained any punitive provisions. The cease-and-desist orders, on which its enforcement is based, follows the tested and equitable procedure of the Federal Trade Commission Act designed to forbid unfair trade practices. Under that procedure, anyone found engaging in what the law holds to be an unfair practice, must stop the practice. But no one is sent to jail as a criminal or deprived of his civil rights.

General Comment. -- Deprivation of the workers of their basic right of self-organization and collective bargaining will not further industrial peace. On the contrary, it will breed unrest. The proposed enactment is fraught with grave consequences to our society. Instead of removing the causes of industrial unrest, the authors of the Bill attempt to outlaw its results. They deliberately close their eyes to the causes of industrial disputes. They ignore the contribution made by the free and voluntary self-organization of workers to a free society. They blindly trample upon the legitimate and lawful aspirations of American wage-earners and seek to destroy the peaceful and constructive relationships and institutions which workers and employers have built up over a period of years. They would outlaw an effective peaceful picketline maintained by workers in seeking a legitimate economic objective. By doing so, they would drive workers from the economic picketlines to political picketlines, in search of a remedy against unfair and discriminatory laws. Today, after the national exertion of a world-wide war, when its attainment of economic stability at home is far from assured, when peace in the world surrounding it is not yet secure, our country can least afford the disruptive consequences which will inevitably flow from the adoption of laws imposing such far-reaching restrictions upon collective bargaining and upon organized labor.

TITLE II - CONCILIATION OF LABOR DISPUTES IN INDUSTRIES AFFECTING COMMERCE

Conciliation Agency. -- Section 201 and 202 of this title remove the U.S. Conciliation Service from the U.S. Department of Labor where it has effectively functioned for many years, and sets it up as an independent agency. It would forbid any employee of the Service to act as an arbitrator. The entire proposal militates against sound judgment, is diametrically opposed to the recommendations of the President's Labor-Management Conference and is supported by nothing but a scatter expression of a small minority of employers.

National Emergencies. -- Sections 203 and 204 prescribe a special c plex procedure for disputes "imperiling the public health and safe" If enacted into law, these sections would create a legislative mon strosity and result in a vast confusion of administrative respons bilities of conflicting agencies.

Having already created, in Title I, a Labor-Management Relations Board, an independent agency of the government, and an office of Administrator of the National Labor Relations Act (also "an independent agency in the executive branch of the Government"), the authors of the Bill establish in Title II an Office of Conciliation, again "as an independent agency in the executive branch of the Government", headed by a Director of Conciliation. But that is only the beginning. This title also authorizes the President to make an independent finding that a labor dispute threatens to curtail commerce or services essential to public health, safety or interest. It then vests the Attorney General with the responsibility to petition a federal district court for the injunction, and subsequently move for the court discharge of the injunction. After the injunction has been in effect for 30 days, the Administrator of the NLRA comes in to conduct a government-supervised ballot. Next the Secretary of Labor steps in. Upon notification by the Secretary of Labor, the Chief Justice of the United States Court of Appeals for the District of Columbia must act. It is the duty of the Chief Justice to then convene a Special Atypical Settlement Board and to assume the chairmanship of that Board. The parties have 5 days to name representatives to the Special Board. The Special Board renders an opinion in 30 days and 15 days later the Administrator of the NLRA comes back again to conduct another government-supervised ballot among the employees, to find out how they feel about the Special Board's opinion. How the employer is to express his feeling about the Special Board's opinion is not stated. If one or both parties refuse to accept the Special Board's opinion, the dispute is back exactly where it started. To accomplish this result, the services of NINE distinct and separate agencies of the federal government are utilized.

Overlapping jurisdiction and conflicting and unrelated responsibilities of this multiplicity of government agencies and bureaus is bound to result in a confusion so profound that a special arbitrator would seem to be called for to resolve jurisdictional disputes among the independently acting agents of the government. The procedures call for thousands of federal agents, repeatedly conducting secret ballots, investigating and rendering reports. It requires mountains of administrative paper work incidental to government record-keeping, reports, tabulations and litigation in the courts. It necessitates huge outlays of public funds to sustain the workings of a teeming bureaucracy called upon to penetrate into every nook and cranny of business firms and of labor organizations.

Chairman Fred A. Hartley of the House Committee on Education and Labor, in publishing the contents of the Bill on April 10, said that the Bill was "our response to the mandate that the people of the United States gave us last November". We are sure that he is misreading and misstating the people's vote of last November. The November vote was a protest against a far-reaching government bureaucracy and excessive federal controls extended into peacetime. Then, as now, the people were fed up with governmental intervention into their private decisions and government control of their private activities and transactions. It was a clear and ringing mandate against the very kind of legislative enactment Mr. Hartley has prepared for the consideration of Congress.

The proposed plan is directed entirely against labor and is completely one-sided. The Norris-LaGuardia Act is repealed with respect to all such cases, permitting the widest reliance on the court injunction against unions. It provides for a compulsory submission of such disputes to a fact-finding Special Board, headed by the Chief Justice of the U. S. Court of Appeals of the District of Columbia. It again requires a secret ballot of employees on the acceptability of the employer's last offer, without regard to the union proposal. By setting up a court of last resort, it promotes protracted disputes and would serve to thwart the possibility of a direct settlement. The plan would contribute nothing to the maintenance of industrial peace and would subject labor organizations and collective bargaining to oppressive government regulation and control.

General Comments. -- This title goes far beyond any known precedent in any field, in peacetime federal intervention. It extends federal control to the very heart of the collective bargain. It allows federal authority to cut across the binding fibre of the private contract. It thrusts federal government jurisdiction into the area now reserved to the state and local jurisdiction. It writes a detailed script for collective bargaining negotiations whereby labor and management reach agreement by government mandate and not of their own accord

and places heavy penalties on those who would depart an iota from the government-prescribed script. It regiments the actions of the workers and employers. It subjects free and voluntary organizations to all-embracing governmental control. It does all of these things, and more, and yet it is offered for the adoption by the Congress in the name of free enterprise!

TITLE III - MONOPOLISTIC PRACTICES OF LABOR ORGANIZATIONS; LIABILITY OF LABOR ORGANIZATIONS; MISCELLANEOUS PROVISIONS

Title III accomplishes four objectives:

1. It not only makes labor organizations subject to the anti-trust laws but adds to the anti-trust laws so as to extend the restrictions far beyond the application sanctioned by the courts in the era of "government by injunction".

2. It greatly extends the present liability of labor organizations for breaches of agreement and makes them suable in the federal courts.

3. It requires annual reports by labor organizations, including statements of finances.

4. It restricts political contributions by labor organizations.

Anti-Trust Laws. -- The Clayton Act is amended to specifically provide that it shall constitute a violation of the anti-trust laws for a labor organization, its members or officers to engage in any combination or conspiracy if one of the purposes or effects of such conspiracy is "to fix prices, allocate customers, restrict production, distribution, or competition, or impose restrictions or conditions, upon the purchase, sale, or use of any product, material, machine, or equipment, or to engage in any concerted activity declared to be unlawful under Section 12 of the National Labor Relations Act, as amended."

Under the prohibition against combinations to "restrict production" any ordinary strike for any ordinary objective might very well constitute a violation of the anti-trust laws. In addition, of course, all of the new unfair practices by unions and union members as prescribed under Section 12 are made subject to such suits. It would be difficult to draw a more brutally repressive measure. Not only is the old doctrine of conspiracy revived, but activities which even in the worst days of "government by injunction" were considered lawful are now made the subject of court action and criminal penalties.

Suits By or Against Unions.-- Section 302 extends the jurisdiction of the federal district courts to include any action involving a breach of a collective bargaining agreement, regardless of the amount in controversy, and apparently regardless of whether there is a diversity of citizenship. It is further provided that unions can be sued as entities and shall be bound by acts of their agents, but that any money judgments are enforceable only against the union as an entity and not against individual members. Courts have jurisdiction of unions if the union maintains its principla office within the court's jurisdiction or if union officers or agents are functioning on behalf of unions in such jurisdiction, and it is provided that service of a subpoena upon such officer or agent constitutes service upon the union. Finally, the present restrictions against injunctions in proceedings involving alleged violations of labor agreements are repealed.

Thus, labor organizations are completely open to damage suits and injunction suits by employers for alleged breaches of agreements in any federal court in whose jurisdiction the union is operating. There are no restrictions against the issuing of temporary restraining orders or temporary injunctions granted ex parte without a hearing upon mere allegations that an agreement has been breached, and, once again, the way has been opened for "government by injunction".

Registration of Unions. -- Section 303 requires that every union whose members are employed in any industry affecting commerce shall file an annual report setting forth its name, address, its receipts and disbursements, the name and compensation and expenses of its principal officers, the name and address of employers with which it maintains collective bargaining relationships, a copy of its constitution and by-laws, together with a statement of its practices in respect to admissions and expulsions of members, and finally, "such

other information respecting the organization and its activities as the Secretary of Labor may by regulations prescribe".

The last above quoted proviso makes it possible for the Secretary of Labor to conduct a complete inquisition into the internal affairs of unions.

Political Contributions. -- Section 304 amends the Federal Corrupt Practices Act to make it unlawful for any union "to make a contribution or expenditure in connection with any [federal] election," both primary and final elections and including political conventions.

Violations are punishable by a fine of not more than $5,000 for the union and $1,000 fine or one year imprisonment or both for the union representatives. The significance of the restriction is the extension to primary elections and political conventions, but apparently the restriction extends only to direct financial contributions to political candidates, because it could not constitutionally operate to restrict the use of funds to propagandize in favor of one candidate or another as by use of radio time, distribution of circulars, etc.

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JOHN LESINSKI, MICH.
GRACIE A. PFOST, IDAHO
AUGUSTINE B. KELLEY, PA.
O. K. ARMSTRONG, MO.
ADAM C. POWELL, JR., N. Y.
JAMES E. MURRAY, MONT.
RAY J. MADDEN, IND.
ANTHONY G. DIMINO, N. Y.
JOHN F. KENNEDY, MASS.
WORLEY M. LUCAS, TEX.

W. MANLY GIFFORD, CLERK

Congress of the United States

House of Representatives

COMMITTEE ON EDUCATION AND LABOR

Washington 25, D. C.

For Use as Desired by Press and Radio April 15, 1947

EXPLANATION OF NEW NATIONAL LABOR POLICY IN H. R. 3020

By
Fred A. Hartley, Jr., of New Jersey
Chairman, House Committee on Education and Labor

"The evolution of our New National Labor Policy reaches its most critical stage in the period between the passage by the House of H. R. 3020, and the emergence of a bill out of conference between the House and the Senate. What happens from now on rests with the American people. By first informing themselves, by reaching their own conclusions as to what is fair and in the public interest, and by then telling the members of the Senate and the President of the United States what they think, they themselves will determine the result.

"In this period it may be that I and all those who signed the majority report and all those who voted for our bill will be denounced. This does not matter. But it does very much matter that the public inform itself. I therefore appeal to all news disseminating channels to convey this message to their readers and listeners.

The November Mandate From the People

"Last November the voters of the United States elected the membership of the Eightieth Congress under the mandate to restore peace between labor and management, to disolve labor monopolies, to stop labor racketeering, to free production from the grip of one strike after another, to protect labor unions

from capture by Communists, and thus to protect our country from subversive political groups intent on destroying constitutional government and thereby becoming government itself.

"The House will obey this mandate. It will send H. R. 3020 to the Senate by an overwhelming majority vote.

"Our New National Labor Policy must go to the Chief Executive as an over-all bill, else the over-all necessity of protecting the public interest will not be met and complete government by class groups will be brought nearer.

Resumption of American Principles

"In drawing up our New National Labor Policy, we constantly kept before us as our model, the provisions of the Constitution of the United States. These provisions insure the recognition of individual rights. Our bill is attacked as anti-labor. It is in fact anti-labor monopoly. It is being attacked by certain labor leaders as Fascistic. It is in fact the means of restoring control of unions to their members, free speech to employers, and to the people as a whole control of production and commerce, and their right to enjoy peaceful and orderly lives.

"We call our bill the Bill of Rights for the working man - and in this greatest of all producing nations every worker must be a producer. Our bill liberates the worker and gives him a voice, and a ballot, free of fear, in the affairs of a union that has over him the power that the National Labor Relations Board gives to his exclusive bargaining agent, and hence to the person that dominates that agency.

The Worker's Bill of Rights

"Our Bill of Rights gives to each worker:

"1. The right to join with his fellow workers to select a collective bargaining agent of their own choosing, that is to say, one that is not forced on them.

"2. The right to get a job without joining any union.

"3. The right to vote by secret ballot in a fair and free election, the votes in which are openly counted, on whether his employer and a union can make him join the union to keep his job.

"4. The right to require the union that is his bargaining agent to represent him without discriminating against him in any way or for any reason, even if he is not a member of the union.

"5. The right with his fellow employees to make demands of their own, and to bargain about them through the leaders of their own local union, without dictation by national and international officers and representatives, and without regard to the demands of other employees upon other employers.

"6. The right to keep on working and getting his pay without sympathy strikes, jurisdictional disputes, illegal boycotts, and other disputes that do not involve him and his union or his employer.

"7. The right to know what he is striking about before he is called out on strike, and to vote by secret ballot in a free and fair election on whether to strike or not after he has been told what his employer has offered him.

"8. The right to express his opinion concerning union policies, union officers and candidates for union office, and to make and file charges against his employer, the union, or the union officers, without suffering any penalty or discrimination.

"9. The right to vote by secret ballot, without fear in free and fair elections on any matter of union policy - how much dues he shall pay, what assessments the union can make him pay, what the union can spend the money for.

"10. The right to vote by secret ballot in free and fair elections for his own choice of union officers.

"11. The right to know how much money his union has, how much it pays its officers, and how much of the union's money the officers use for their expenses.

"12. The right to refuse to pay the union for any kind of insurance, welfare or relief that he does not want.

"13. The right to receive his pay in his pay envelope, without the employer and the union spending it for him, checking it off for union dues or for other purposes.

"14. The right to stay a member of a union, without being suspended or expelled, except for (1) not paying dues, (2) disclosing confidential information of the union, (3) violating the union's contract, (4) being a Communist or fellow traveler, (5) being convicted of a felony, (6) engaging in disreputable conduct that reflects on the union.

"15. The right to be free of threats to his family for doing things in connection with union matters that an employer or a union does not like.

"16. The right to settle his own grievances with his employer.

"17. The right without fear of reprisal, to support any candidate for public office that he chooses and to decide for himself whether or not his money will be spent for political purposes.

"18. The right to go to and from his work without being threatened or molested.

"19. The right to a union free of Communist domination and control, and one that is devoted to honest trade unionism and not class warfare and turmoil.

"20. Every right to strike for any legitimate object that he has had under our laws for the last hundred years.

"21. And finally, the right to have a fair hearing, before an impartial Board, without cost to himself, whenever he believes that any employer or any union is depriving him of these rights.

<u>The Rights of Employers</u>

"The rights of individual workers are balanced in our bill, with a declaration of rights for employers. The bill bans the closed shop. Under

carefully drawn regulations it permits an employer and a union voluntarily to enter into an agreement requiring employees to become and remain members of the union a month or more after the employer hires them or after the agreement is signed. Such agreements are lawful, however, only if the employees by secret ballot have selected the union as their bargaining agent, and if the majority of all the employees, by a separate secret ballot, authorize the union to enter into the agreement, and if the agreement is not prohibited by State law. An employee may be expelled from the union and thus forced to leave his job only if the expulsion is by reason of his failing to pay fees and dues imposed upon employees generally. Under this clause, employers may select their own employees. Employees have 30 days to decide whether or not to join the union. Unions may not cause the discharge of employees by discriminating against them. The agreement must be voluntary. Unions may not strike to compel employers to enter into such agreements. They are subject to loss of bargaining rights if they do so.

Mutual Rights Safeguarded

"The mutual rights of worker and employer are safeguarded further by abolishing the old prejudiced National Labor Relations Board, by setting up a new Board, and by creating the independent office of administrator who investigates and prosecutes, but who does not judge.

"Our Bill of Rights forbids the Board to regard as employees foremen and other representatives of management who act for employers in their dealings with employees and their unions. The evidence before the committee showed conclusively that so-called independent unions of foremen are not in fact independent, but that the unions of men the foremen supervise actually control them. The evidence further shows that management must have in the plants agents who are entirely loyal just as representatives of the workers must be undivided in their loyalty to the workers.

"Free speech in a democracy, cannot be granted to one and denied to another without placing in jeopardy the rights of both. Although the old Labor Board protests it does not limit free speech, it is apparent from decisions of the Board itself that what persons say in the exercise of their right of free speech has been used against them. The bill provides that the new Board is prohibited from using as evidence against an employer, an employee, or a union any statement that by its own terms does not threaten force or economic reprisal.

"Continuing further the definition of mutual rights, our bill establishes equal responsibility before the law for both worker and employer.

"It has been because of the abuse of such rights as the foregoing that the public interest has suffered. These abuses were aggravated a thousand-fold under so-called industry-wide bargaining. We have dealt with this problem in two ways:

"First, by amending the National Labor Relations Act, the bill forbids the Board to certify one union as the bargaining agent for employees of two or more competing employers, and also forbids employees of two or more competing employers to conspire together to strike at the same time. There are two exceptions to these rules. One union can represent less than 100 employees of each of several competing employers if the employers' plants are not more than 50 miles apart. This permits small groups of employees to bargain together and permits small employers to bargain together, but limits the kind of bargaining that so often leads to price fixing and other monopolistic practices. The second exception permits unions that represent employees of competing employers to affiliate or associate together if their bargaining, striking and other activities are not subject to common control. Under this exception, national and international unions would be able to perform for local unions functions like those that trade associations perform for member companies now, but would not be able to dictate to them.

Second, the bill arms the President with the authority to seek injunctions against

strikes that imperil the public health and safety, and authorizes courts to issue injunctions in such cases without regard to the Norris-LaGuardia Act.

Restore National Unity

"'If a house be divided against itself, that house cannot stand.' Twelve years ago, Public Act No. 198 - which our bill amends - sought to establish the false doctrine of class division. But this house, this nation of ours, is established on a firmer foundation than class attachments and antagonisms. The Constitution of the United States derives its vitality from the spiritual truths it expresses. These truths are the real laws to which we as employees and employers must adjust ourselves. Our New National Labor Policy is designed to accomplish that adjustment and to assure the observance of constitutional principles in all our labor-management relations."

THE BASIS FOR A NEW NATIONAL LABOR POLICY

CONDITIONS From Which Public Demands Protection	CAUSES Of Labor Conditions From Which Public Demands Protection	CORRECTION Of Causes of Conditions From Which Public Demands Protection
The public has voted and responded to polls and said over and over again that Congress must enact legislation to protect the public from:	These five conditions from which the public demands protection grew out of a deliberately created political situation which encourages or permits:	The public is in general agreement it must be protected from these five evils by legislation to bring about free industrial relations. Legislation to correct the fundamental issues should:
1. Violence, intimidation, and extortion.	1. Conspiracies by union leaders to foment discord and dissension between worker and employer which are made possible by - Lack of worker control of union tenure as bargaining agent Lack of worker control of tenure of union officers Lack of worker control of strike action	1. Protect the workers in each corporate unit of employment from betrayal by their leaders by requiring the secret ballot at stipulated intervals to determine whether they desire - To have or continue the union To continue or change union officers To determine strike action
2. Community paralysis and flouting of public welfare - By conspiracies - To stop necessities of life - Food, fuel, transportation, communication To restrict production To control prices	2. Remote and monopoly control of local unions, workers, and business by means of - Union-wide domination of local worker-employer relationships Restraint of local police authority by Federal statutes.	2. Outlaw industry-wide control in unionism just as monopoly control was outlawed in business.
3. Denial of inalienable rights - To employ - To be employed - In any occupation or profession of one's own choice With maximum of freedom consistent with constitutional law and order	3. Compulsory union membership.	3. Ban closed shop and regulate compulsory unionism.
4. Invasion and suppression of democratic processes by Federal Government in collusion with union tyranny With consequent denial of - Individual rights to workers, and Home rule to communities With consequent usurpation of management functions by unions	4. A political subsidy of special privilege to one side only - the union leaders - in the form both of laws and maladministration.	4. Restore the Bill of Rights to all, particularly freedom of speech and communication by eliminating control by any administrative agency over such rights. Restore management functions to management. Confine government to proper administration of the law on unfair labor practices.
5. Un-Americanism Communistic infiltration Infusion of alien ideas through seizure of organizations and power of working groups.	5. The furtherance of class warfare for partisan advantage.	5. Reject alien ideologies and return Federal government to protection of human rights and preservation of a virile free economy.

ARCHITECTURAL & ENGINEERING GUILD

April 19th, 1947

Congressman Fred A. Hartley, Chairman
Education and Labor Committee
House of Representatives
Washington, D. C.

Honorable Sir:

Our Organization asks which your cooperation and aid in voting against any and all anti-labor legislation.

May we take this opportunity of explaining to you that any anti-labor legislation will undo all the progress made by labor in the last fifty years, and in so doing will have a tendency to make the working men and women bitter. Such bitterness is not going to help our democratic way of life. We again ask you to vote against any and all anti-labor legislation and may we please have your reply as to what action you intend to take on such anti-labor bills.

Respectfully yours,

George Dietz, Jr.,
Secretary

GDiurn
ociu-153

via: SPECIAL DELIVERY

cc: President Wm. Green, A.F.of L.
cc: F. J. Pratt, Pres., IFTEADU
cc: Building & Construction Trades Council

Same letter sent to all members of Labor Committees of House of Representatives and Senate, and Senator Wagner.

Labor, Management
Interests

From the American Federation of Labor
Information and Publicity Service

FOR RELEASE IN WEDNESDAY MORNING PAPERS - Apr.16,1947

President William Green of the American Federation of Labor in a final appeal to each member of the House of Representatives urged the defeat of the "highly objectionable" omnibus anti-labor bill now being considered by the House.

At the same time Mr. Green announced that the Executive Council of the American Federation of Labor will hold its spring meeting in Washington, D.C. beginning April 21st -- a meeting which will be largely devoted to the drafting of ways and means of defeating restrictive and coercive legislation.

The text of Mr. Green's letter to Members of the House of Representatives follows:

"I am making this last appeal to you, in behalf of the millions of members of the American Federation of Labor, to vote against the highly objectionable anti-labor measure recommended for passage by the House Committee on Education and Labor.

"Please bear in mind that these millions of workers who will be the victims of this restrictive and oppressive legislation are the same workers who served so patriotically during the recent World War and who produced the airplanes, the ships, the tanks, the guns, and served on the transportation systems of the nation in such a wonderful way in order to win the war. Is this to be their reward? Are they to be punished, oppressed, and their rights and liberties restricted by vindictive, punitive laws?

"Please consider this phase of the question for a moment. I cannot help but think if you will do so you will vote against H.R .3020 as I have herein requested. What is back of it all? Why this drive to weaken labor and subject it to exploitation?

"The men and women of labor here in America who cherish the blessings of freedom and liberty as a common heritage, cannot accept or become reconciled to such drastic legislation. No nation under the sun has proposed or considered the adoption of such legislation as this since the close of the war.

"This earnest and sincere personal appeal is based upon my knowledge and understanding of the heart and mind of the working people of the nation. In their name and for them I earnestly appeal to you to vote against H.R. 3020."

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April 15, 1947

Mr. Leo W. Hinton, President
Glass Bottle Blowers Association of the
United States and Canada
Philadelphia Saving Fund Building
12 South 12th Street
Philadelphia 7, Pennsylvania

Dear Sir and Brother:

I was tremendously pleased to learn through your letter dated April 14 that you have a long petition signed by some fifteen thousand people from all walks of life in opposition to anti-labor legislation to be presented to Senator Taft. This is a fine piece of work on your part and those associated with you. If you wish you may forward the petition to our office and our Legislative Representatives will present the petition to Senator Taft and his colleagues. Said petition ought to make a deep impression. Again thanking you, I beg to remain

Fraternally yours,

President
American Federation of Labor

amm

EARL WARREN
Governor of California
PAUL SCHARRENBERG
Director of Department
MARY L. PARKS
Assistant to Director
MARY P. WARD
Accounting Officer

STATE OF CALIFORNIA
DEPARTMENT OF INDUSTRIAL RELATIONS
GENERAL OFFICES
FORUM BUILDING, SACRAMENTO 14
STATE BUILDINGS—SAN FRANCISCO 2, AND LOS ANGELES 12

DIVISIONS
Housing
Industrial Safety
Industrial Welfare
Industrial Accidents
Labor Law Enforcement
Apprenticeship Standards
Labor Statistics and Research
State Compensation Insurance Fund

ADDRESS REPLY TO:
San Francisco 2

April 15, 1947

Mr. William Green, President
American Federation of Labor
A. F. of L. Building
Washington, D. C.

RECEIVED
APR 21 1947

Dear Mr. Green:

The enclosed press release just issued may be of assistance to you in combating anti-union arguments in Congress.

With every good wish, I am

Sincerely yours,

Paul Scharrenberg

Paul Scharrenberg
Director of Industrial Relations

PS:mgp
enc

April 15, 1947

Mr. Harold D. Burnsworth, Chairman
Pittsburgh Area Chapter
American Committee for Democratic Action
82 Methodist Building
Pittsburgh, Pa.

Dear Mr. Burnsworth:

I was pleased to learn through your telegram dated April 15th that your organization has pledged support to resist the enactment of restrictive labor legislation now pending in the Congress of the United States. The anti-labor attitude of the Members of Congress represents a drive launched against labor by Members of Congress. It is an attempt to weaken labor unions, to subject them to exploitation and reduce them to a state of impotency. The employers will be the beneficiaries of such action. They can then dominate the employes, control them and resist any attempts on their part to improve working conditions and increase wages.

The anti-labor drive referred to is reflected in the attack made on the Department of Labor and the attempt which is being made to render it ineffective. The Department of Labor represents all labor. It serves all labor; consequently the drive is against all labor and not against a few.

For your information I enclose copy of a last moment appeal which I made to the Members of Congress in behalf of labor. I know the appeal fell on deaf ears but nevertheless in the transmission of the communication which I am bringing to your attention we made a record at least in behalf of labor.

I thank you for your letter and for the help you are extending labor by communicating with Members of Congress urging them to oppose the adoption of anti-labor legislation.

Very truly yours,

President,
American Federation of Labor

ds

WESTERN UNION

A. N. WILLIAMS
PRESIDENT

1947 APR 15 PM 1:22

SYMBOLS
DL = Day Letter
NL = Night Letter
LC = Deferred Cable
NLT = Cable Night Letter

Time shown in the date line on telegrams and day letters is STANDARD TIME at point of origin. Time of receipt is STANDARD TIME at point of destination

W91 PD= MILWAUKEE WIS 15 1049A

WILLIAM GREEN, PRESIDENT AMERICAN FEDERATION OF LABOR=

:A F OF L BLDG=

RECEIVED
APR 15 10 50

WILL START IMMEDIATELY TO COMPLY WITH YOUR REQUEST OF APR 11 RELATIVE TO THE 6TH CONGRESSIONAL DISTRICT OF WISCONSIN. IF YOU DEEM IT ADVISABLE, WE ARE WILLING TO APPEAR WITH COMMITTEE TO MAKE PERSONAL CONTACT WITH REPRESENTATIVE OF SAID DISTRICT=

:GEORGE A HABERMAN PRESIDENT WISCONSIN STATE FEDERATION OF LABOR.

11 6.

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

WESTERN UNION

A. N. WILLIAMS
PRESIDENT

SYMBOLS
DL = Day Letter
NL = Night Letter
LC = Deferred Cable
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Ship Radiogram

The filing time shown in the date line on telegrams and day letters is STANDARD TIME at point of origin. Time of receipt is STANDARD TIME at point of destination

GA6 NL PD=PITTSBURGH PENN 14

WILLIAM F GREEN=

PRESIDENT AMN FEDERATION OF LABOR WASHDC=

1937 APR 15 AM 12 37

RECEIVED
APR 15 1937

PITTSBURGH AREA CHAPTER AMERICAN FOR DEMOCRATIC ACTION PLEDGES SUPPORT TO RESIST RESTRICTIVE LABOR LEGISLATION NOW BEFORE CONGRESS. WE BELIEVE LABOR MUST ASSUME RESPONSIBILITY IN PROMOTING INDUSTRIAL PEACE BUT THIS CAN BEACCOMPLISHED ONLY BY FREE DEMOCRATIC LABOR MOVEMENT. WE SHALL URGE REJECTIONS OF SHORT SIGHTED MEASURES INIMICAL TO DEMOCRATIC PROCESSES=

=PITTSBURGH AREA CHAPTER AMERICAN AMERICAN FOR DEMOCRATIC ACTION HAROLD D BURNSWORTH CHAIRMAN 82 METHODIST BLDG.

82

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

A. F. Whitney, President

P. R. Healey, Assistant to the President and Editor and Manager Official Publications

W. P. Kennedy, General Secretary and Treasurer

Grand Lodge
Brotherhood of Railroad Trainmen

General Offices, Cleveland, Ohio

AFW:EIJ:rcv

April 15, 1947

Mr. William Green, Pres.
American Federation of Labor
Washington, D. C.

RECEIVED
APR 17 1947

Dear Sir and Brother:

I am writing to appeal that all labor elements in the United States join forces to defeat the vicious Hartley Labor Bill which will come up for a vote in the House of Representatives in Washington this week.

The number of the bill is H.R. 3020. It is the most sweeping anti-labor bill ever drafted in either house of Congress. There can be no doubt that it is designed to crush organized labor. It would prohibit industry-wide bargaining, the closed shop, strikes for so-called "feather-bedding rules;" it would authorize injunctions to stop strikes in industries "vital" to public health and welfare.

The Brotherhood of Railroad Trainmen may not be immediately affected by some of the bans, since legislation affecting railroad workers is written by the House Committee on Interstate Commerce. We know full well, however, that any successful attack on our brothers in other industries will be repeated on us. We are not waiting for that tragedy to develop.

Our entire membership is being mobilized to fight and fight now. They are being asked to send telegrams to the Congressmen from their respective states, urging the Congressmen to vote against this bill.

I hope you will rally your membership in an effective joint fight.

Fraternally yours,

A. F. Whitney
President

...ployees Union No. 503

...of T. C. W. and H. of A.

...filiated with the A. F. of L., Minnesota State Federation of Labor,
Ramsey Joint Council No. 32,
Saint Paul Trades and Labor Assembly

Office Telephone: Dale 4121

1011½ University Avenue

Saint Paul 3, Minn.

April 15, 1947

RESOLUTION

Whereas, at the present time organized business is driving against organized labor and all peoples who strive for better standards of living for the working people and

Whereas, there are a number of anti-labor bills before the Congress of these United States and

Whereas, these bills are attempts to stifle organized labor, without considering what effects they will have on the welfare of the entire public in these United States and

Whereas, these bills are an abrogation of the basic and fundamental rights of people living under a competitive and free enterprise system,

Therefore, Be It Resolved, that Warehouse Employees Union Local Number 503, IBTCW & H, A. F. of L., in meeting assembled on April 14, 1947 do request the President of these United States to veto any anti-labor bills.

By Donald C. Cassedy
Donald C. Cassedy, Bus. Treas.

By Thomas J. Noble
Thomas J. Noble, President

By Clarence Vesterby
Clarence Vesterby, Chairman
Legislative Committee

The Secretary

RECEIVED
APR 17 1947

April 15, 1947.

U.S. Senator Robert A. Taft, Chairman, Senate Labor Committee,
U.S. Senate,
Washington,
D. C.

Dear Senator:

I am writeing you this protest as president of the Arkansas City Central Labor Union, Secretary of Local 641, I.A. T.S.E. and M.P.M.O. of U.S. and C. and Secretary of the Kansas State association of the I.A.T.S.E. and what I say herein has the approval of the above mentioned organizations.

First, in my opinion, and the opinion of the above A.F. of L. Organizations, the Anti Closed Shop part of your Vicious Anti Labor Bills, bears about as much justice as would a bill to prohibit Railroads from kicking Bums off freight trains and is also comparable as to wisdom. Second, Before the anti Industry bargining part of yourbill could be fair in the least, it would be necessary for you to pass a bill prohibiting, to act on an industry wide basis, as to prices profits ect.

Third, I would think a lot more of you if you would come out honestly and say that you are bitterly against Labor, and intend to use what influence you have to destroy it.

Very Sincerly Yours

Charlie H. Gresty, President, A.C. C. L.U.

C.C. Senators, Reid, Capper, Congressman, Myer.

J. CLYDE HUTAFF
President
Oklahoma City, Okla.

FLOYD BLACKMAN
First Vice President
Bartlesville, Oklahoma

DALE REEVES
Second Vice President
Hennessey, Oklahoma

A. C. REILLY
Third Vice President
Muskogee, Oklahoma

DEAN BAUGH
Executive Secretary-Treasurer
Oklahoma City, Oklahoma

VERNON TAYLOR
Fourth Vice President
Oklahoma City, Okla.

FRANK KELLY
Fifth Vice President
Oklahoma City, Okla.

O. C. CAMPBELL
Sixth Vice President
Wetumka, Oklahoma

JOHN CARVER
Seventh Vice President
Hugoton, Oklahoma

OKLAHOMA STATE FEDERATION OF LABOR

AFFILIATED WITH THE AMERICAN FEDERATION OF LABOR

Office of the Executive Secretary-Treasurer
700 Leonhardt Building
Phone 14869

OKLAHOMA CITY 2, OKLAHOMA

April 16, 1947

4/17/47
Okla. Hustling

Mr. George Meany, Secretary-Treasurer
American Federation of Labor
A. F. of L. Building
Washington 1, D. C.

Dear Sir and Brother:

Enclosed herewith is a report of legislative action in the Oklahoma Legislature on the proposed amendment to the constitution to ban the close-shop, which you may want to publish.

In case it is published you may edit the item in any way you desire.

We are in hopes that the legislature will finish its work next week. Since we have been able to kill anti-labor bills in both the House and Senate during this session, it is doubtful that other attempts will be made to restrict labor.

Fraternally yours,

Dean Baugh

Dean Baugh
Executive Secretary

RECEIVED APR 17 1947

RECEIVED APR 1 7 1967

RECEIVED APR [redacted] 1967

April 16, 1947

Mr. Lester Washburn, President
International Union United Automobile Workers
of America
Suite 1013, 231 W. Wisconsin Avenue
Milwaukee 3, Wisconsin

Dear Sir and Brother:

I herewith reply to your letter dated April 8th. In this communication you refer to the composition of the session of Congress now meeting in Washington and you recommend that a national legislative conference be held in Washington for the purpose of dealing with the situation in Congress.

Ever since Congress has been in session, I have appealed repeatedly to the membership of the American Federation of Labor to communicate with their representatives in Congress and to appeal to said representatives to oppose anti-labor legislation introduced in the Congress of the United States.

In addition mass meetings have been held in different sections of the country. At these mass meetings resolutions were adopted protesting against the adoption of anti-labor legislation and calling upon Congress to defeat it. I attended a meeting at Columbus, Ohio, a week ago where representatives of our American Federation of Labor movement in Ohio were present. Mass meetings have been held in Virginia, Pennsylvania, Maryland, New Jersey and other places.

I have appeared before Committees of Congress appealing to the Members of Congress to defeat the anti-labor legislation pending. It seems, notwithstanding this fact, that Congress is determined to strike a blow at labor. It is seeking to weaken and destroy labor unions, to make labor unions so impotent as to render them weak and

inefficient. The whole drive is against labor. It has extended to the Labor Department. The Members of Congress will not listen to you. They charge the officers of labor unions do not represent labor and in support of that point that they (the Members of Congress) were elected by labor and insist that they will be re-elected by labor.

The Executive Council of the American Federation of Labor will meet at our headquarters here in Washington beginning April 21st. The whole legislative situation will be brought to the attention of the Council for its decision as to procedure and action.

It is my honest opinion that a conference such as you suggested will not have any effect upon the Members of Congress.

As I have herein stated, I plan to report to the Executive Council when it meets next Monday upon the legislative situation and request that the Executive Council decide as to what further steps shall be taken in dealing with the distressing situation in Congress by the American Federation of Labor.

Very truly yours,

President,
American Federation of Labor

WESTERN UNION

A. N. WILLIAMS
PRESIDENT

CHECK

ACCOUNTING INFORMATION

TIME FILED

Send the following telegram, subject to the terms on back hereof, which are hereby agreed to

April 16, 1947.

FOR VICTORY
BUY
WAR BONDS
TODAY

MR. FRANK MARTEL, PRESIDENT
DETROIT CENTRAL LABOR UNION
LABOR TEMPLE
PARK AND MONTCALM
DETROIT 1, MICHIGAN

JOHN LESINSKI, MINORITY LEADER HOUSE COMMITTEE EDUCATION & LABOR, HAS MADE A WONDERFUL FIGHT AGAINST THE ANTI-LABOR BILL IN COMMITTEE, ON THE FLOOR, ON THE RADIO AND BY PRESS RELEASES. HE HAS DONE EVERYTING POSSIBLE FOR LABOR AND WILL CONTINUE THE FIGHT ON THE FLOOR OF THE HOUSE UNTIL THE BILL IS PASSED PROBABLY LATE FRIDAY. YOU IN DETROIT SHOULD BE PROUD OF HIM AND WIRE HIM ENCOURAGEMENT AND OPPOSITION TO THE BILL, H.R. 3020.

W. C. HUSHING, CHAIRMAN
NATIONAL LEGISLATIVE COMMITTEE
AMERICAN FEDERATION OF LABOR

ns

AFFILIATED WITH THE AMERICAN FEDERATION OF LABOR

PRESIDENT, LEE W. MINTON
PHILA. SAVING FUND BUILDING, PHILADELPHIA, PA.

VICE PRESIDENT, ZEKE C. WRIGHT
206 W. WASHINGTON ST. WINCHESTER, IND.

SECRETARY, THOMAS D. EAMES
PHILA. SAVING FUND BUILDING, PHILADELPHIA, PA.

TREASURER, WILLIAM GABLE
3617 LIBERTY BOULEVARD, SOUTH GATE, CALIF.

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N. MAIN ST. EXTENSION, WASHINGTON, PA.
RAYMOND H. DALTON
MARKSVILLE, PA.
J. BELTON WARREN
P. O. BOX 255 LAURENS, S. C.

Glass Bottle Blowers Association
of the United States and Canada
Phila. Saving Fund Building
12 South 12th Street, Philadelphia 7, Pa.

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JOSEPH M. MILROY
716 NORTH ALABAMA OKMULGEE, OKLA.
EDWARD D. HUBBARD
1801 LUCK AVENUE MUNCIE, IND.

April 17, 1947

RECEIVED
APR 19 1947

Mr. William Green, President
American Federation of Labor
Washington, D. C.

RE: Anti-Labor Legislation Petition

Dear Sir and Brother:

I have your letter of April 15 regarding our anti-labor legislation petition.

You have requested that the petition be forwarded to your office in order that the legislative representatives can present it to Senator Taft and his colleagues.

I had intended having a picture taken of this petition with an effect of being piled up on the floor. I had further intended having copies of the picture made and forwarded to the entire labor press. If it would be possible, I would deeply appreciate it if this picture could be taken by your Federationist staff and a copy of the glossy print sent to me. I shall then have mats made of the picture and see that it gets wide circulation.

This petition is signed by members, and their families, of the Glass Bottle Blowers Association as well as other people from all walks of life.

I am forwarding the petition to you under separate cover, as requested in your April 15th letter.

With best personal regards, I am

Fraternally yours,

Lee W. Minton

Lee W. Minton, President
GLASS BOTTLE BLOWERS ASSOCIATION
of the United States and Canada

LWM
map

This memorandum omitted from package containing petition sent by Railway Express 4/18/47.

This petition is approximately 230 feet long. A great deal of it is signed on both sides of the paper which doubles in effect the number of feet.

For publicity purposes you can carefully note the dirt and grease that appears on many of the petitions, which prove their authenticity; also that they were signed by the men and women who help to manufacture some of the products of our nation.

Lee W. Minton, President

GLASS BOTTLE BLOWERS ASSOCIATION

FRANK M. STARETEN
[illegible] District, Illinois

Wm Lehlbach
[illegible]

CONGRESS OF THE UNITED STATES
HOUSE OF REPRESENTATIVES
WASHINGTON, D. C.

April 18, 1947

RECEIVED
APR 19 1947

Hon. Wm. Green, President,
American Federation of Labor,
A.F. of L. Building,
Washington, D. C.

Dear Mr. Green:

Receipt is acknowledged of your letter.

The Labor Bill was taken up in the House yesterday. I spoke against the measure and also voted against it. The Bill that was presented was admittedly the most drastic anti-labor legislation that has ever been advanced. In my opinion, it will do much more harm than good.

The legislation did not have the sound consideration it should have received. There are many who want to take away all the rights and benefits that have come to labor in recent years and the Bill clearly reflects this attitude. I have always been a strong believer in collective bargaining. Under our Constitution, I do not think Congress has the power to make an individual work if he does not desire to work.

The Bill now goes to the Senate. If you have not already done so, I would suggest you place your views before the Senators.

With kind regards,

Sincerely yours,

Frank M. Stareten

April 18, 1947

Mr. E. F. Noble, President
Central Labor Union
307½ West Second Street
Grand Island, Nebraska

Dear Sir and Brother:

I acknowledge receipt of your letter dated April 9th with copy of a communication enclosed which you advised me you plan to mail to the Members of Congress who represent the State of Nebraska in the Congress of the United States. I am of the opinion that the letter you prepared is most fitting, proper and appropriate.

I noted the newspaper clipping which you enclosed. If you wish Judge Padway's advice regarding the anti-strike legislation referred to in the press clipping, please write him direct and request him to advise you.

Very truly yours,

Otto W. Brach

President,
American Federation of Labor

ds

Mo/Secretary

Address all communications to the Secretary, OTTO W. BRACH, 912 Adams Street, Toledo 2, Ohio

TOLEDO CENTRAL LABOR UNION

FOUNDED 1892

● A. F. of L. Affiliate ●

Meets First and Third Thursdays, 8:00 P. M., Labor Temple, 912 Adams Street

Phone, ADams 9621

TOLEDO (2) OHIO

PRESIDENT
Frank Fischer
VICE-PRES.
Walter Morgan
REC. SEC'Y.
Frank Berry
TREASURER
Ray Bowles
GEN. SEC'Y.
Otto W. Brach
TRUSTEES
F. Hurd
Ray Myers
Stanley Kudlinski
LIBRARIAN
Chas. Dombrowsky
SGT.-AT-ARMS
Carl Benson
ATTEND. SEC'Y.
Ada Long

April 19, 1947

Mr. William Green, President
American Federation of Labor
A. F. of L. Building
Washington, D. C.

RECEIVED
APR 21 1947

Dear Sir and Brother:

Enclosed find copy of communication, this day sent to all members of the Senate Appropriation Committee. We have also advised our Senators from Ohio on the same subject.

Fratemally yours,

Otto W. Brach

OWB:JC
OEIU:19
A.F.L.

Otto W. Brach, Secy,
TOLEDO CENTRAL LABOR UNION

WASHINGTON STATE
FEDERATION OF LABOR
2800 First Ave. • Seattle 1

Legislative News

FROM

WASHINGTON STATE FEDERATION OF LABOR

E. M. WESTON, PRESIDENT

2800 FIRST AVENUE — MAIN 3978 SEATTLE 1, WASHINGTON

★ ★ ★ ★ ★ ★ ★ ★

25

April 21, 1947
URGENT

S O S

To All Affiliates
Washington State Federation of Labor:

The Hartley anti-labor bill, passed by the House on April 17, contains every anti-union provision short of actually barring unionization by name. This bill is undoubtedly a trial balloon to test the reaction of labor. Every affiliate should immediately wire their Congressmen, particularly both U. S. Senators, that this bill is entirely obnoxious to labor and will set labor-management relations back 40 years. Labor can not enter collective bargaining negotiations with both hands tied behind its back. Labor in this state with its record of meeting its responsibilities feels this bill is an undeserved stab in the back. If your representative was one of the three from this state that voted against the bill (Jones, Tollefson, Jackson), wire him advising him that you appreciate his sane and fair attitude on the Hartley bill. If he is one of the two that supported the bill (Holmes and Horan), wire him that you regret his support of this vicious anti-labor legislation. Individual members should also, if possible, send wires and letters immediately as labor's fate is really hanging in the balance in Congress at this time.

Fraternally,

E. M. Weston *President*
Washington State Federation of Labor

PERSONNEL RELATIONS IN INDIANA

Published by the
Personnel Relations Department
Indiana State Chamber of Commerce
Board of Trade Building
Indianapolis 4, Indiana

Service Letter No. 61 April 21, 1947

Action!

HAVE YOU WRITTEN YOUR CONGRESSMAN?

It is no longer news that the House of Representatives has passed the Labor-Management Relations Act (H. R. 3020) by a majority of 308 to 107.

You might remind yourselves that the House, in the past, has often passed legislation in an attempt to give equality before the law in labor relations matters and the Senate has usually failed to go along. Result - no legislation.

It is the members of the House who are elected every two years and are undoubtedly the closest to what the people back home want. Congressmen from Indiana, as well as other states, have long known what the rank and file of labor organization membership in their districts are thinking. The election returns last fall confirmed their opinion. American men and women of labor are just as anxious to be unshackled from dictatorial labor leaders, who presume to represent them, as is the American public from the constant threats and demands that such leaders are going to shut down the American economy unless they are permitted to run politics and business in the United States. Today, Congress is hearing the usual screams about vicious anti-labor laws, destruction of freedom of the American worker, and such tripe, which everybody knows including those who speak it, is deliberate misinformation. There may be some semblance of truth that H. R. 3020 might be considered anti-John L. Lewis and his stripe, but the House labor bill is certainly pro-labor, and a vast majority of intelligent workers know that and want it passed.

Indiana Congressmen are undoubtedly being vilified by some vociferous and unscrupulous labor leaders.

You should take the time to write your Congressman that you think he has done the right thing, if you really think so.

Indiana Congressmen voted for the passage of this bill as follows:

For Passage	Against Passage	Absent Due To Illness
Halleck	Madden	Ludlow
Gillie		
Grant		
Harness		
Johnson		
Landis		
Mitchell		
Wilson		
Springer		

Labor leaders have certainly shown they are unworthy of more great trust and great power in their hands

(Over please)

Mr Hamberg

Here is how the labor bill passed by the House compares with the one approved by the Senate labor committee, as reported by the Chicago Journal of Commerce on April 16th:

	House	Senate
Curb industry-wide bargaining	Yes	No
Ban jurisdictional strikes	Yes	No
Ban secondary boycotts	Yes	No
Forbid closed shop	Yes	Yes
Outlaw checkoff of union dues	Yes	No
Change National Labor Relations Board	Junk it	Enlarge it
Delay strikes by injunction	Yes	Yes
Create new mediation agency	Yes	Yes
Make unions suable	Yes	Yes
Require union finance reports	Yes	Yes
List "unfair" union practices	Yes	Yes
Provide Senate-House study	No	Yes
Bar Communist union officers	Yes	No

(NOTE: In some cases where the House and Senate bills both have provisions for a certain purpose, the provisions themselves differed.)

* * * * * * * * * * * * *

WHAT'S HAPPENED TO THE PORTAL-TO-PORTAL BILLS?

The portal-to-portal scare has died down for the moment so the public may not be informed as to just what is the present status.

You will remember that both the House and the Senate passed rather far-reaching bills seeking to outlaw portal-to-portal claims, and both bills attempt to define "work" for which compensation is paid under the Fair Labor Standards Act.

The bills differed somewhat and a conference committee has been trying for weeks to reach agreement. Latest reports are that such agreement is not yet in sight. When and if they are able to agree on a bill, there is no assurance that it will be approved by the President.

Conferees appointed from the Senate are Senators Alexander Wiley (R.-Wis.), Forrest C. Donnell (R.-Mo.), John Sherman Cooper (R.-Ky.), James O. Eastland (D.-Miss.), and J. Howard McGrath (D.-R. I.).

The House appointed Representatives Earl C. Michener (R.-Mich.), John W. Gwynne (R.-Ia.), Angier L. Goodwin (R.-Mass.), Emanuel Celler (D.-N. Y.), and Francis E. Walter (D.-Pa.).

Thus we may wake up one of these days and find that the portal-to-portal mess is still with us.

* * * * * * * * * * * * *

RECEIVED MAY 7 - 1947

April 22, 1947

Mr. Paul Scharrenberg, Director of Industrial Relations
State of California
Department of Industrial Relations
State Buildings
San Francisco 2, California

Dear Mr. Scharrenberg:

I am grateful to you for sending me a copy of a press release which contains very valuable information and which was given publicity in California at least a short time ago. The data and information contained in this press release is very valuable and will be mighty helpful to us in our fight against anti-labor legislation in the Congress of the United States.

With all good wishes, I beg to remain

Very sincerely yours,

President,
American Federation of Labor

ds

Re/duchung

ARCHITECTURAL & ENGINEERING GUILD
LOCAL 66 I. F. T. E. & D. U., A. F. OF L.
19 EAST 40TH STREET
NEW YORK CITY

RECEIVED
APR 24 1947

April 23rd, 1947

Congressman Charles J. Kersten
House of Representatives
Washington, D. C.

Honorable Sir:

We have just received your letter in reply to our previous letter of April 16th, concerning labor legislation. We note your sentiments and we also note your statement that - and we quote - "We have effected an inclusion in the law of the voluntary union shop". You further state that your amendment to the labor law put the same restrictions on employers as the original draft put on unions.

May we point out to you, as you well know, that the aforementioned restrictions on employers is not going to help the union shop and it is also common knowledge that ever so many employers don't want union shop, therefore, it would be impossible to get a union shop or have employees go on strike for a union shop or any kind of union security. We know labor can take but one position, that any type of legislation of this nature is a means of defeating and squelching labor and I am sure that if the Congressmen would have heard the remarks of the rank and file working man, they would never have voted for this bill. May the undersigned voice his humble opinion, based on the remarks he has heard from "dyed-in-the-wool" conservative Americans, that this bill passed by the House of Representatives is going to make more Communists than any action by the Communist Party.

May we ask you to please use your personal efforts to eliminate the punitive and anti-labor machinery contained in the bill when the joint conference between the House and Senate Committees is held.

Thanking you for your attention.

Respectfully yours,

JLR:mm
oeiu-153

J. Lawrence Raimist, C.E., Lic.P.E.
Business Manager

P. S. In the absence of our Secretary, the above sent reply to your letter.

cc: Mr. W. Green, Pres., A.F.of L.
cc: Mr. F.J.Pratt, Pres., I.F.T.E.A.D.U.
cc: Central Trades & Labor Council

354 Atwood St., Pgh. Pa.
4/21/47.

Dear Mr. Green:

The anti labor, union busting law is half way through Congress and it's high time something was done. To hell with pussyfooting - this calls for militant, aggressive opposition and right away. There's no use locking the barn door after the horse has been stolen. The time to act is now.

The whole American labor movement is threatened with destruction and so is our standard of living. Fast, aggressive action is absolutely necessary immediately.

Yours Sincerely,
Roy Barris.

RECEIVED
APR 23 1947

PITTSBURGH, PA.
APR 21
3:30 PM
1947

1847 CENTENARY 1947

INTERNATIONAL PHILATELIC EXHIBITION

NEW YORK, N. Y.
MAY 17-25
1947

U. S. POSTAGE STAMPS

THIS SIDE OF CARD IS FOR ADDRESS

Mr. William Green,
President - American Federation of Labor,
American Federation of Labor Bldg.,
Wash. D. C.

ARCHITECTURAL & ENGINEERING GUILD
LOCAL 66 I. F. T. E. & O. U. A. F. OF L.
15 EAST 40th STREET
NEW YORK CITY

RECEIVED
APR 24 1947

April 23rd, 1947

Congressman Ellsworth B. Buck
House of Representatives
Washington, D. C.

Honorable Sir:

In the absence of Secretary Dietz, the undersigned takes this opportunity of replying to your letter dated April 21st, 1947 which in turn was a reply to our previous communication. You refer to H.R. 3020 and enclose a copy of your remarks in the House of Representatives on Tuesday, April 15th, 1947. In your remarks in the House you state that this is a bill which is for the American workman. You state that you would not support this bill if it were contrary to labor's interests or damaging to the legitimate labor movement, etc.

The undersigned will not attempt to discuss the entire bill with you, the objections have been voiced by persons more capable than he, however, he particularly wishes to call your attention to Section 2, Sub-Section 12, paragraphs (b) and (c) (it is found on page 11 of the printed copy of the bill). From these paragraphs, this bill would deprive the following types of employees from enjoying legal collective bargaining, namely - engineering and architectural employees who work in capacities of designers or checkers or Chiefs of parties in surveys, inspectors, squad leaders, research engineers, methods engineers, time study engineers, etc., etc., all of whom are wage earners and not professionals. Yet you speak of not doing anything contrary to the interests of labor.

Perhaps your concept of labor is different than ours. Our concept of labor is anybody who works for a living. The misnomer of "professionals" attached to architectural and technical engineering employees who work for "coolie compensation" unless they are organized and who are deprived of overtime pay because the professional title is erroneously applied to them, is only a means of giving the employer engineers or corporations an opportunity to exploit technical engineering and architectural employees.

Thus, we trust that you will again fine comb your opinions

regarding this bill and correct the injustices to the technical engineering and architectural employees in plant, field or office.

Thanking you for your attention,

Respectfully yours,

J. Lawrence Rimiot, C. E., Lic., P.E.
Business Manager

JLR:Mm-ociu-153

cc: Mr. W. Green, Pres., A. F. of L.
cc: Mr. F. J. Pratt, Pres., IFTEAIU
cc: Mr. T. Murray, Pres. N.Y. State Federation of Labor
cc: Central Trades & Labor Council
cc: Building & Construction Trades Council
cc: Union Label Trades Council

Telegram Apr. 15, 1947 - - - L. J. Callinan
Charleston, W. Va. in re contacting W. Va.
Congressmen on Labor Legislation

Telegram Clyde A. Wolfe Grand Coulee Central Labor
Council, Apr. 8, 1947 - in re anti labor legis-
lation - see file

Political W. Va.
and

political - Washington